



PARLIAMENTARY DEBATES

OFFICIAL REPORT

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

SECOND MEETING, 2025

Saturday, 12th July, 2025

The House met at 10.05 a.m.

[MR FIRST DEPUTY SPEAKER IN
THE CHAIR]

[PRAYERS]

Mr First Deputy Speaker: Hon Members, let us take the item numbered 5 on today's Order Paper, Correction of *Votes and Proceedings* and the *Official Report*.

**VOTES AND PROCEEDINGS AND
THE OFFICIAL REPORT**

Mr First Deputy Speaker: We have before us, the *Votes and Proceedings* of Friday 11th July 2025.

—[Pause]—

[No correction was made to the Votes and Proceedings of Friday, 11th July, 2025]

Mr First Deputy Speaker: Yes, any indication?

Dr Jasaw: Mr Speaker, I would like to request of you, respectfully, to vary the order of Business of the day and take the Fisheries and Aquaculture Bill, 2025 at the Consideration Stage.

Thank you, Mr Speaker.

Mr First Deputy Speaker: The application is to do the Fisheries and Aquaculture Bill, 2025.

Dr Opoku: Mr Speaker, we have no objection.

Mr First Deputy Speaker: Hon Members, the Fisheries and Aquaculture Bill, 2025, is under consideration.

**BILL— CONSIDERATION STAGE
Fisheries and Aquaculture Bill,
2025.**

[Resumption of Consideration from 11/07/25]

Mr First Deputy Speaker: Hon Members, we have done up to clause 100, so we will then move to clause 101.

Clause 101— Application for permit to import fish, fishery product and aquaculture product.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Godfred Seidu Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is, however, for the consideration of the House.

Hon Members, any proposed amendments?

Yes, Hon Frank Afriyie?

Mr Frank Afriyie: Mr Speaker, clause (2)(e), if you permit me to—

Mr First Deputy Speaker: Hon Member, are you talking about clause 101(2)(d)?

Mr Afriyie: Mr Speaker, absolutely.

Mr First Deputy Speaker: Very well.

Mr Afriyie: If you will permit me, clause 101(2)(e) reads, “any other document determined by the Commission”. I think that if we can make room beyond the document for “fees or levies”, so when it becomes necessary for any fees or additional levies, they may not have to come to the House for approval.

Mr First Deputy Speaker: Except that the fees, levies and charges are mostly determined by this House. So, if you give them that blanket, they will do it without coming to the House. We have the Fees and Charges (Miscellaneous Provision) Act, 2022 (Act 983), which spells out those things for the approval by the representatives of the people. So, in effect, it is the representative of the people and the people who determine the fees and charges.

Mr Afriyie: Thank you, Mr Speaker.

Mr First Deputy Speaker: Any proposed amendments or any other concerns?

Clause 101 ordered to stand part of the Bill.

Clause 102 — Issue of permit to import fish, fishery product and aquaculture product.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment?

Yes, Hon Member?

Mr Duke William Allen Kwame Amoako-Atta Ofori-Atta: Mr Speaker, the last part of clause 102(1) says, “...an agricultural product”.

Now this Ministry is Ministry of Fisheries and Aquaculture Development, so I would seek that we add, “in collaboration with the Ministry of Food and Agriculture”.

Then the rendition should be:

“Where the application satisfies the requirements under section 101, the Commission, in collaboration with the Ministry of Food and Agriculture, shall issue the applicant with a permit to import fish, a fishery product or an agriculture product”.

Mr First Deputy Speaker: No, from the headnote, it says, “Issue of permit to import fish, fisheries product and aquaculture product”.

Mr Ofori-Atta: Yes, Mr Speaker.

Mr First Deputy Speaker: It is the same aquaculture product and the rendition also says "... an aquaculture product".

Mr Ofori-Atta: Yes, Mr Speaker. I stand corrected.

10.15 a.m.

Mr First Deputy Speaker: Very well. Any further concerns?

Clause 102 to 104 ordered to stand part of the Bill.

Clause 105 — Qualification for permit to export fish, fishery product and aquaculture product.

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Dr Mahama: Mr Speaker, I was seeking guidance and direction from the Chairman of the Committee on why within the qualification for export, GEPA is not featured. I am thinking that there was going to be an omnibus clause somewhere that could cater for that. I just need clarity before I propose an amendment.

Dr Jasaw: Mr Speaker, unless there is something specific that GEPA would need to do here, my understanding of their mandate is that they are to engage in activities that promote export of Ghanaian products to the rest of the world. So, the promotional mandate does not really fall in here. Unless there is something specific that he thinks GEPA does that is required here, I would want to pray that we allow this to stand and pass it as is currently captured.

I thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Member, in addition, it is only when you satisfy all these requirements and you are eligible to import or export that GEPA will then come in. If you do not satisfy the requirement, you basically have nothing to do with them.

Dr Mahama: I am guided, Mr Speaker.

Mr Francis Kwabena Berepong Owusu-Akyaw: Mr Speaker, I just want to seek your guidance. I think that clause 104 should now—

Mr First Deputy Speaker: We are now at clause 105.

Mr Owusu-Akyaw: Yes, so clause 105 should be clause 104 and clause 104 should be clause 105. The reason being that I think the qualifications for a person to export should first come before the prohibition of a person to export.

Mr First Deputy Speaker: Very well. Very germane point. Thank you very much. I will direct the draftspersons to take a look at this for us. It is just a rearrangement of the provisions.

Clause 105 and 106 ordered to stand part of the Bill.

Clause 107 — Issue of permit to export fish, fishery product and aquaculture products.

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr Afriyie: Mr Speaker, in clause 107(2)(a), I pray we look at it carefully and if possible, replace the word “aquatic” with “aquaculture”, so that it reads:

“(a) the species of fish, fishery products or aquaculture products ...”

So that it is in sync with the subheading itself.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, for consistency, I think we can accept that.

Mr First Deputy Speaker: Thank you very much; the Hon Member is right. The proposed amendment is after “or” in clause 107(2)(a), *delete* “aquatic” and *insert* “aquaculture”.

I will proceed to put the Question on clause 107(2)(a).

Question put and amendment agreed to.

Mr First Deputy Speaker: Very well. It is in clause 107(2)(b) as well, so it is consequential.

Clause 107 as amended ordered to stand part of the Bill.

Clause 108 — Conditions for export of fish, fishery products and aquaculture product.

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr Owusu-Akyaw: Mr Speaker, clause 108(1), I just want us to add the “products” to “fisheries” as has been in clause 107, so that it reads:

“A person who is issued with a permit under section 107 to export fish, fishery products...”

So, we will add an “s” to “product”, so that it will be in line with clause 107.

Mr First Deputy Speaker: But clause 107 says “fishery products” and this one also says “a fishery product”. It is because of “a”, “a fishery product”, and it is in consonance with clause 107.

Mr Owusu-Akyaw: Thank you.

10.25 a.m.

Mr First Deputy Speaker: Yes. However, I would direct the draft persons to tidy it up, because if you see clause 107(2), it is “fishery products” and clause (2)(b) is also “fishery products”. So, for consistency’s sake, I will direct the drafters to take a look at it for us.

Clause 108 ordered to stand part of the Bill

Hon Members, at the Consideration Stage — Hon Osei-Akoto, at Consideration Stage, that one, the rule that you may rise at your place and speak does not apply because of the *proviso*. So, you can come forward.

Clause 109 — Validity of permits.

Mr First Deputy Speaker: Chairman of the Committee.

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House.

Yes, Hon Kabiru?

Dr Mahama: Mr Speaker, looking at the trade permit validity period, usually, it ranges between three to six months. And the Committee is proposing to have this permit limited to the lower threshold.

Mr First Deputy Speaker: Please speak into the microphone.

Dr Mahama: Mr Speaker, we have not taken breakfast. *[Laughter]*

Mr Speaker, the sponsors of the Bill are proposing that the trade validity period should be for three months. And I am saying that this is a lower band of the usual trade permit validity where we have up to six months. I was just thinking, why will we have to give them the minimum in this case? If they say they just feel otherwise, I will move an amendment for us to make it six, to just allow trade flexibility, Mr Speaker.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, he is right, except that these permits are usually for a single transaction. And so, for the single transaction, I think it is safer to

keep a 90-day window rather than 180 or more. Food products, safety issues, and other standard issues may arise. And so, it is safer to keep it within 90 days to have adequate check on it. So, I pray that we allow the current rendition to stay.

Dr Mahama: Mr Speaker, it is safe to say that the advancement in technologies have also allowed in this particular provision. We have storage facilities where people are allowed to store and they are to acquire permit for such purposes. And for me, I would have gone for trade flexibility and ease of doing business than to go for the trick rigours of safety issues as have been argued. So maybe if you may want to come further before I move my amendment or I could —

Mr First Deputy Speaker: Under the international conventions, will you be permitted to store fish beyond three months before you export it to them?

Dr Mahama: Mr Speaker, rightly so. It is allowed especially for frozen products. Frozen products can stay for that long. So, it is not — it depends. If you are selling fresh fruits, even smoked fish, they can stay that long. So, depending on—it is only fresh fruits or fresh fish that—

Mr First Deputy Speaker: We are not talking about selling it domestically; this is for export. We are sending it outside the country.

Dr Mahama: Mr Speaker, we have six months old fish we eat in this country.

Mr First Deputy Speaker: We are not talking about eating in this particular country. The provision in the law is talking about exportation. You are sending the product outside the country. It is not the one that you consume domestically. Because the licence is in relation to exports.

Dr Jasaw: Mr Speaker, in addition, we have had extensive discussions with other potential destination country stakeholders, Food and Agriculture Organisation (FAO), European Union (EU), and so on. So, there are quite standards of practice, and especially that that is our biggest market, the EU. There are some standard requirements from some of these, and this is what is informing this three-month window. So, it could be allowed to stay.

Dr Mahama: My concern has been addressed, Mr Speaker.

Mr First Deputy Speaker: Yes, thank you very much.

Yes, Hon Member?

Mr Owusu-Akyaw: Thank you, Mr Speaker. I am also concerned. I want to just seek your guidance on — “For a single transaction”, we are talking about 102 and 107. One is export, one is import. And when the licence is valid for three months for a single transaction, and I am thinking that maybe a company or an entity can do two exports within the three months. Can it be that it would go contrary to the licence or what?

Mr First Deputy Speaker: For every transaction, there will be some certification before you can either bring the goods in or take it out. So, if a blanket licence is given for a period of one year, then it means that at any point in time, you can either bring it or send it to avoid a situation where for every product, it must be certified before you export or import. That is why whatever has been certified for you for export, that is what they will give you the licence to do. If another time you have another product certified, then that one can also go. There are some control measures being put here. That is my understanding.

Mr Owusu-Akyaw: Mr Speaker, please, whereby the certified one, because something happened, the person could not send it within the three months — It has been certified by the Commission, and within that three months, he was able to send, let us say, 70 per cent —

Mr First Deputy Speaker: Yes. So, the 30 —

Mr Owusu-Akyaw: We are talking about a single transaction. So, it means that he has to come back and certify the same thing again.

Mr First Deputy Speaker: We are talking about import and export. So, if you have a container load of fish certified for you to export, why would you be exporting it in bits? Now, if you are unable to import after three months, who determines whether after three months, the fish is wholesome for import or

export? Do you understand? So, if after three months you are allowed to export, then that element of certification, whether it is wholesome for export or import, will no longer be there.

Fish is a consumable. So, they will have to ensure that whatever you are bringing into the country, whatever you are sending out of the country, is really good for human consumption. So, when you keep it for three months and you have not been able to export it, then that licence issued to you to export that particular fish has expired. So, if you want to do it again, then you must go through another certification process to determine whether after three months, the fish is still good for human consumption. Then you can be allowed to import or export. That is the meaning I am gathering from this. So, it is something like a control measure that is being put in place to provide safety for you and I; the consumers of the fish.

Mr Owusu-Akyaw: Thank you, I am guided.

Clause 109 ordered to stand part of the Bill.

10.35 a.m.

Clause 110 — Marketing of fish, fishery product and aquaculture product.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment?

Clause 110 ordered to stand part of the Bill.

Clause 111 — Control and traceability of fish, fishery product and aquaculture product

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: Hon Members, there is no advertised amendment from the Committee. It is however for the consideration of the House.

Yes, Hon Frank Afriyie?

Mr Frank Afriyie: Mr Speaker, thank you very much. May I find out from the Chairman of the Committee why under clause 110, where there is a non-custodial charge of maximum three thousand penalty units, else, when one defaults, one could attract as much as 4 years' imprisonment but in clause 111(4), a maximum of non-custodial charge of 5,000 penalty units and then in default, one could be in prison for a maximum of only 2 years? For me, I do not know why the variation. The crimes are different, but looking at it, in my estimation, the second one is even weightier.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, I do not know the basis on which my Colleague thinks the second one is weightier and so I will defer this to the lawyers to see the comparability. I know that we deliberated on this extensively and we were advised by the Attorney-General that unless there is a compelling reason, we should allow this current rendition to stay.

Mr First Deputy Speaker: You see, the point that the Hon Member is raising is that if you come to 110(4), it reads;

“A person who contravenes subsection (1), (2) or (3) commits an offence and is liable on summary conviction to a fine of not less than one thousand penalty units and not more than three thousand penalty units or to a term of imprisonment of not less than two years and not more than four years, or to both”.

However, if you come to 111(4), it reads;

“A person who contravenes subsection 2 commits an offence and is liable on summary conviction to pay a fine not less than two thousand penalty units”.

In 110, it is 1,000 penalty units but here, it is 2,000 penalty units and not more than 5,000 penalty units, but in 110, it is not more than 3,000 penalty units. In terms of the penalty units, there are variations. One is higher than the

other. However, the one that is higher attracts a prison sentence not less than 1 year and not more than 2 years, but the lower one rather attracts a higher prison sentence not more than 2 years and not more than 4 years. That is why he is drawing our attention to the inequities in the two provisions.

Dr Jasaw: Mr Speaker, I think I am convinced and so, if you could kindly defer it to the drafters to reconcile. I do not mind switching the terms.

Mr First Deputy Speaker: I will consequentially direct the drafters to reconcile the two because the penalty units must be in consonance with the fine. So, very good observation, keep it up. Thank you very much.

Mr Afriyie: Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, any further?

Clause 111 ordered to stand part of the Bill.

Drafters should take note accordingly.

Clause 112 — Information and records

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendments? Observation?

Clause 112 ordered to stand part of the Bill.

Clause 113 — Monitoring, control and surveillance

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendments?

Clause 113 ordered to stand part of the Bill.

Clause 114 — Compliance Notice

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendments?

Clause 114 ordered to stand part of the Bill.

Clause 115 — Enforcement of directives of the Commission.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendments?

Clause 115 ordered to stand part of the Bill.

Clause 116 — Authorised Officer

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendments?

Clause 116 to 121 ordered to stand part of the Bill.

10.47 a.m.

Clause 122 — Establishment of Fisheries Enforcement Unit.

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr Richard Acheampong: Mr Speaker, thank you very much. I just want the Chairman to throw more light on clause 122, reading together with clause 116.

Clause 116 talks about authorised officer and we are provided with a list. The first one is the Ghana Navy, the Ghana Air Force, the Police Service, the Water Resources Commission. But under the establishment of the Fisheries Enforcement Unit, you cannot find the

Water Resources Commission. I do not know if they decided to omit them or whatever because they are part of the authorised officers. So, if we are setting up an enforcement unit, we need to include them—*[Interruption]*—No, but the Ghana Navy and the Ghana Air Force is in (a); that one has been taken care of. But the Water Resource Commission is not under clause 122.

Dr Jasaw: Mr Speaker, that is a good observation. I think that, once clause 116 identifies the authorised officers, the enforcement units should capture, at least, those authorised officers. So, if you could direct the draftspeople to reconcile and update that—

Mr First Deputy Speaker: So, Hon Member, move the amendment.

Mr Acheampong: Mr Speaker, I beg to move that after paragraph (f), *insert a new paragraph, “(g) Water Resources Commission”*.

Then the current paragraph (g) moves to (h). Mr Speaker, you can direct the draftspeople to arrange that.

Dr Jasaw: Mr Speaker, I would need your guidance here. I also noticed that in clause 116, we have “any other relevant organisation”. Do we capture that as well in the enforcement unit? Because the Commission will determine if, in the exigencies of the situation, location and time, there will be a need for an additional officer from any other institution.

Mr First Deputy Speaker: Hon Richard Acheampong, the difference between clauses 116 and 122 is that, if you look at 122, it is establishment of Fisheries Enforcement Units. They are not officers, *per se*, designated. And if you look at the institutions therein, they are all security agencies, apart from the Commission, which would then be the umbrella body.

But Water Resources Commission is not a security agency because apart from the Commission, the Ghana Navy, Police Service, Immigration Service, Customs Division of the Ghana Revenue Authority, the Office of the Attorney-General and Ministry of Justice, and representatives of other competent agencies as the Commission may determine. So, that is a clear difference.

Mr First Deputy Speaker: Yes, Hon Kabiru?

Dr Mahama: Mr Speaker, rightly so, I think that clause 116, if we want to have the replica of that here, then we will create more problems. I think that 116 is talking about designated officers who are authorised by the Commission and that they could be authorised to perform certain functions.

But here we are talking about the enforcement committee, more or less, or body. It must not necessarily reflect, but if there is the need for the Commission to involve someone from Water Resources Commission, I think the omnibus provision will take care of that. I think that the current rendition—

Mr First Deputy Speaker: Because in this case, once the Committee is established by law, they need no authorisation to work.

So, Hon Acheampong, do you still insist on your proposed amendment?

Mr A. Alhassan — *rose* —

Mr First Deputy Speaker: Let us deal with him; we will come to you. Or is it in connection with the—Very well

Mr Abdul-Fatawu Alhassan: Mr Speaker, I am tempted to agree with Hon Richard Acheampong because if you look at it, even though clause 116 does not talk about law enforcement agencies, under 118, personnel from those institutions have been clothed with the powers of the police in terms of arrest.

So, we have kind of given an enforcement power to those officers named under 116. So, if the same person is brought under clause 122 which talks about enforcement, it means that the person will just be using the powers as the person has been given under clause 118 to perform such functions of enforcement.

Mr First Deputy Speaker: You see, Hon Member, the difference is that, in clause 116, you must be authorised before you can act, but in clause 122, once it is established, you need no authority. Do you understand? So, it is easy in 116 to give a specific authority to a Member of Parliament. But in 122, the element of specific authorisation is not there. So, you act as of rights. So, in this

case, the Ghana Navy, the Police Service, the Customs Division of the Ghana Revenue Authority and the Immigration Service, by their establishment, can act as of rights.

10.55 a.m.

That is where the difference is.

Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, so, in essence, clause 112, is fleshing out the security agencies to take care of enforcement. So, if Mr Acheampong can withdraw his proposed amendment, then we can move on.

Mr Acheampong: Mr Speaker, I have got your explanation and the sponsors are in disagreement with me, so all the odds are against me — *[Laughter]*—So, let us maintain the clause 122(2)(g), so that it takes care of that. So, my proposed amendment is duly withdrawn.

Mr First Deputy Speaker: Very well. So, I will put the Question.

Clause 122 to 129 ordered to stand part of the Bill

Clause 130 — Certificate of evidence

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House.

Yes, Hon Member?

Mr Anthony Mmieh: Mr Speaker, may I seek your guidance. May I take you back to clause 128?

Mr First Deputy Speaker: Hon Members, when the Question is put and carried, you can only come back at the Second Consideration Stage.

Mr Mmieh: Very well. Then I would note that.

Mr First Deputy Speaker: Yes. So, I will put the Question.

Clause 130 to 137 ordered to stand part of the Bill.

11.05 p.m.

Clause 138—Destruction of evidence.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment from any Member?

Yes, Hon Richard Acheampong?

Mr Acheampong: Thank you very much, Mr Speaker.

Mr Speaker, I will still need your guidance on clause 138. The headnote reads, “Destruction of evidence”. If you read the first line, it says:

“A person who destroys or abandons a fish, fishing gear, net or any other fishing appliance...”

The first line is talking about destruction and abandonment. But the headnote is talking about only “destruction of evidence”. So, if I abandon a fishing net or whatever, if I have not destroyed it; it does not amount to destruction— No, I run away and left it. You can pick it up and examine it. So, in this case, if I have abandoned something, how do you get me to place a fine on me? But you are saying if I do that, there is a penalty for it. Where are you going to find me to place that penalty on me?

Mr First Deputy Speaker: Hon Richard Acheampong, if your smock is supposed to be in evidence and you are hiding it, are you destroying the evidence? Because the destruction is not in relation to the subject matter: it is in relation to the evidence. So once it is not available to be evidence, that evidence is destroyed.

My pen is supposed to be admitted in evidence and a decision will be based on this pen. And I have destroyed this particular pen as a result of which it is no longer available. I have run away with this pen as a result of which it is not available. I have thrown this particular pen into the sea as a result of which it is no longer available. I have hidden this

particular pen as a result of which it is not available. So, once it is not available for the purposes of evidence, the evidence is destroyed. That is why they are saying destruction of evidence.

Mr Acheampong: Mr Speaker, if I am on the high sea and I run away and leave my ship or the vessel on the high sea, that ship can be found— **[An Hon Member:** What about the fish?] The fish is in the ship. So, we can find the ship but I have abandoned it. You cannot find me for prosecution.

Mr First Deputy Speaker: Yes, two things constitute a crime; the act and the intention. So, under what circumstances —

Mr Acheampong: Yes, the *mens rea*. *[Laughter]*

Mr First Deputy Speaker: So once it is intentional, there will be an element of a crime. You know, no act entails criminal responsibility unless the mind is legally blameworthy. So, the dead language said, *actus reus non facit reum nisi mens sit rea*. That is, no act entails criminal responsibility unless the mind is legally blameworthy. So, did you leave it deliberately in order to destroy the evidence? Or it was not deliberate? So, all those things will be looked at in establishing whether or not a crime has been committed.

Clause 138 ordered to stand part of the bill.

Clause 139— Liability of master and an officer of a company.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Hon Members, any proposed amendment?

Clause 139 ordered to stand part of the Bill.

Clause 140—Continuing offence.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Hon Members, any proposed amendment to clause 140?

Clause 140 is accordingly ordered to stand part of the bill.

Clause 141—Banning order.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment?

Clause 141 ordered to stand part of the Bill.

Clause 142—Release of seized goods.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment?

Clause 142 ordered to stand part of the Bill.

Clause 143—Forfeiture by Court.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment?

Clause 143 ordered to stand part of the Bill.

Clause 144—Compounding Offences Committee.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Hon Members, any proposed amendment?

Hon Dr Mahama?

Dr Abdul Kabiru Tiah Mahama: Mr Speaker, I am proposing that clause 144(2)(c) should have the “National Fisheries Association of Ghana” or the “Ghana Aquaculture Association” replaced by “Fisheries and Aquaculture Association”. I am making this proposal so that we can find a definition to include that and other emerging associations because when we say “all” it is difficult to get which of them we are going to appoint.

I am also saying this being mindful of clause 149. Clause 149 talks specifically about National Fisheries Association and of meeting the Aquaculture Association. So, because of the plurality of associations in this particular sector, to avoid people saying that “I am supposed to be there, this officer is not supposed to be there” and leaving the discretion to the Minister to determine as the case maybe, I am proposing that—

Mr First Deputy Speaker: Hon Chairman of the Committee, is National Fisheries Association of Ghana different from the Ghana Aquaculture Association?

Dr Jasaw: Yes, Mr Speaker, they are different.

If I may add, what the Hon Member is proposing will actually compound the issue in a worse form because these are specified and they are those that are known and registered.

11.15 a.m.

Because these are specified and they are those that are known and registered and have been working with the Commission and the Ministry as well. But if we allow it to be open to associations it means we are rather empowering the Minister or the Commissioner to select which one they are comfortable with, that will not give the kind of transparency that we are looking for.

Mr First Deputy Speaker: The point that he is raising is “a representative of the fishing industry”, that one is clear “nominated by the National Fisheries Association of Ghana or” and once the National Fisheries Association of Ghana is different from the Ghana Aquaculture Association, how are they going to do this nomination?

Yes, Hon Odamtten?

Mr Isaac Ashai Odamtten: Mr Speaker, like the Chairman of the Committee said, the two named associations are supposed to be the mother or the umbrella associations catering for marine and inland. So, whichever the situation may be, the representative, if the matter has to do with inland or aquaculture, would come from there and that is why “or” must stand.

Dr Mahama: Mr speaker, to avoid the problem I am pre-empting and to still give the discretion to the Minister to determine if it is National Fisheries Association or Ghana Aquaculture

Association, we can recouch that rendition to mean “the relevant fishery association” or “relevant aquaculture and fishery association”. This is so that it will still give the discretion to the Minister because when we come to clause 149, we specifically mentioned an association meanwhile it is a reference to fisheries and aquaculture appeals, but we did not mention the fisheries in there. So, when this argument is to hold, then we would have to repeat the same rendition here or we just make it and define what we mean by “fishery aquaculture association” in reference to these two so that it prevents any ambiguity whatsoever. Thank you.

Dr Jasaw: Mr Speaker this Committee is an *ad hoc* committee so it depends on where the offence is. If it is inland, then the representative comes from the Ghana Aquaculture Association. If it is in the marine, trawl or the tuna subsector, then the representative comes from the National Fisheries Association.

Mr First Deputy Speaker: But, Hon Members, what is bothering my mind is that once it is an *ad hoc* committee do we, by law, determine its composition?

Yes, Hon Bekoe, I will give you the floor after him.

Prof Titus Kofi Beyuo: Mr Speaker, this is subject to your guidance. It may be acceptable to define the constitution of this committee. But this last one should be “as the case may determine”. We must add a clause that depending on the case, then we bring it in. In some labour matters we can have a disciplinary

committee, we set it up and we say that depending on the union that the case is coming from, a representative of that union is put on the committee; I see a similarity here.

So, it may be from the Ghana Aquaculture Association or the National Fisheries Association. But there must be a clause or a defining sentence that “as the case may determine”, so that just as the Chairman has stated, anytime it is being constituted, if the case is from aquaculture there is a representative from the Ghana Aquaculture Association and if the case is from fisheries, then there is a representative from the National Fisheries Association. This is because it is an *ad hoc* committee; it is as and when it is established. Respectfully submitted.

Mr First Deputy Speaker: Yes?

Mr Frank Asiedu Bekoe: Mr Speaker, I think that legislating by mentioning the name of an association in it is quite problematic, especially when this body is an *ad hoc* one. Why do we not make it aquaculture or fisheries so that as the enterprise is evolving whether the National fisheries Association lives or not, we can still find a leeway in that. If we mention the names of the association, it means that we are pinning ourselves to a particular point. Tomorrow, these associations may cease to exist and what would we do.

Mr First Deputy Speaker: Let me pick the brain of the Hon Second Deputy Speaker. For *ad hoc* committees, do you determine each composition by law?

Mr Andrew Asiamah Amoako: Mr Speaker, my understanding of *ad hoc* is normally determined by the circumstances. So, if the circumstance calls for it, then quickly, we organise and establish a team to look at it. But legislating it and making it the permanent situation could create a problem. So, once the committee is actually determining that it is *ad hoc* then, probably, we have to look at it from the angle that “*ad hoc*” is always based on the circumstance. Therefore, I will go by what my Hon Brother said that once it is an *ad hoc* committee then we have to lessen our position of legislating it to make a standing position of the law. So, Mr speaker as it stands now, that will be my position.

Dr Zanetor Agyeman-Rawlings: Mr Speaker, with reference to the clause that makes reference to “*ad hoc*”, the “*ad hoc*” is in reference to the frequency of meeting, it is not with reference to the committee. The committee is established as an offences committee, so that one is there, but when we say “on an *ad hoc* basis”, *ad hoc* is referring to the frequency of meetings; as and when it is required. But the “Compounding Offences Committee” is the committee itself which is not an *ad hoc* committee; it is an established committee. The “*ad hoc*” is making reference to the frequency within which that committee shall meet, based on any offences that may be committed. So, the committee is not *ad hoc*.

Mr First Deputy Speaker: So, if you look at clause 144 (1), it reads:

“The Commission shall establish, on an *ad hoc* basis, a Compounding Offences Committee”

Dr Agyeman-Rawlings: Yes, Mr speaker, which makes reference, yet again, to the frequency. So, we can define what the existence of that committee constitutes, and that remains. But the fact is the reference of *ad hoc* basis is with reference to the fact that we may not have offences happening on a frequent basis. So, as and when is what the “*ad hoc*” is making reference to.

Mr First Deputy Speaker: Yes, that is the very meaning of *ad hoc* for instance, *ad hoc* means—

Dr Agyeman-Rawlings: But the committee has been identified—

Mr First Deputy Speaker: Yes, *ad hoc* means as and when. Do you understand? That is the meaning. So, *ad hoc* committees are mostly not permanent committees. Now, you cannot establish “Compounding Offences Committee” as a standing committee, and ask that particular standing committee to sit on *ad hoc* basis.

Dr Agyeman-Rawlings: Per the clause here, that is what it is implying. Because on an *ad hoc* basis is making reference to the frequency of meeting.

Mr First Deputy Speaker: So, let us take a parliamentary —

Dr Agyeman-Rawlings: Mr Speaker, if the purpose of this is not to speak to the

type of committee it is, then the “*ad hoc* basis” there should go.

This is because “*ad hoc*” basis is talking about the frequency of meeting.

11.25 a.m.

This is because *ad hoc* basis is talking about the frequency with which the committee meets.

Mr First Deputy Speaker: Normally, the Standing and the Select Committees do not sit every day but upon a referral. If a matter is referred, then the Committee can sit. So, in a way, it is not every day sitting, but the *Ad hoc* Committees that we have, per the Standing Order, the Committees are not even named. So, it is as and when the issue crops up, then the House will, by a Motion, form the Committee to deal with that particular issue. And as soon as the Committee finishes dealing with that particular issue, that Committee has done its work and its existence has come to an end.

Looking at Standing Order 262, it says:

“The House may, by a Motion, appoint a Special or an Ad Hoc Committee to

- (a) investigate any matter of public importance; and
- (b) consider any Bill or matter that is not within the jurisdiction of any of the Standing or Select Committees.”

This means that the formation of the committee itself is on *ad hoc* basis. So this one, if you are saying that it is a permanent committee, why would you then establish a permanent committee and provide in the clause that the Commission shall establish on *ad hoc* basis? Because you are establishing the committee on *ad hoc* basis.

Yes, Hon Zanetor?

Dr Agyeman-Rawlings: Mr Speaker, for example, the Committee on Petitions would usually have meetings specifically based on referrals when petitions are brought to it. But it does not mean that, in the absence of petitions coming to the Committee, it does not exist even in name. So, here we have been given a specific name, but the frequency for which this is constituted —Because once you say that they should sit every day, it changes the dynamics of the frequency of meeting of that Committee.

But once you say that on an *ad hoc* basis, that means that you are saying that, as and when there is an offence, they meet. And the specifics of who is on that committee is stated here. But it is not an *ad hoc* committee. It is a committee that is meeting on an *ad hoc* basis, which is different from an *ad hoc* Committee. That is what my interpretation of this is, Mr Speaker.

Mr First Deputy Speaker: Very well.

Yes, Hon Member?

Mr Bismark Tetteh Nyarko: Mr Speaker, my understanding of this committee is that it is *ad hoc* because any time it is finished with its work, that committee will be dissolved. But it is telling us that any time that issue comes up again, we should go back and select the committee as prescribed here. That is it. So, I agree that this rendition should be like that. But the (c), where my Brother speaks —

Mr First Deputy Speaker: So, let us resolve this issue. You have made me a member of a committee. Why would you dissolve that particular committee if I have finished with the matter that you had given me? I still belong to that particular committee. So, in the future, if there is any matter, then you refer it to the same composition.

Mr Nyarko: Mr Speaker, clause 144(2)(a), for example, says, “a representative of the Attorney-General...” So, for the first committee, probably, Dr Mahama is the representative from the Office of the Attorney-General and Ministry of Justice. When he is done with the work, that committee is dissolved. When a matter comes up again, that representative might not necessarily be Dr Mahama; it might be my good Friend over there. So, the *ad hoc* is the nature of the frequency the matter is referred to the committee which makes it an *ad hoc*. Any time that issue comes up again, we have to form the committee.

Mr First Deputy Speaker: If you form a board and you say that, on the board, there must be a representative

from the Office of the Attorney-General and Ministry of Justice — This is a word that we have been using when we are composing governing bodies. And we said a representative of the Office of the Attorney-General and Ministry of Justice not below the rank of a Chief State Attorney nominated by the Attorney-General who is the chairperson.

Yes, let me hear the Second Deputy Speaker first and I will come to Hon Sosu.

Mr Andrew Asiamah Amoako: We were thinking together. Probably, if we can do away with the “*ad hoc*”. Well, that is my — Because it appears that the argument and the discussion is hovering around *ad hoc*. So, if we can do away with the “*ad hoc*” and probably, make the committee permanent as part of it, then probably, all this discussion will be situated well.

Mr First Deputy Speaker: Yes, so, the proposal is to do away with the “on *ad hoc* basis”.

Yes, let me hear Hon Sosu.

Mr Francis-Xavier Kojo Sosu: Mr Speaker, I support the proposal that we do away with the “on an *ad hoc* basis”. Mr Speaker, what this means is that the frequency of the meeting is an administrative process. So, as and when it becomes necessary, a referral is made to the committee. Now, the membership of the committee is statutory. So, anytime the referral is made, the membership is put together to look at the issue. So, I think that I really support the

proposal that we do away with “on an *ad hoc* basis”. So, that the rendition will read:

“The Commission shall establish a
Compounding Offences
Committee...”

Then the others can follow, Mr Speaker.

Mr First Deputy Speaker: Yes, Dr Mahama?

Dr Mahama: Mr Speaker, there are three things here: the first thing that I got from the Chairman of the Committee was to the effect that the National Fisheries Association and that of the Ghana Aquaculture Association were *ad hoc* committees or associations. That was the first thing I got. But now, there are associations existing and that hurdle has been passed.

The second issue has to do with whether the established Compounding Offences Committee is supposed to be an *ad hoc* committee or a standing or select committee. From the framing of this particular Bill, looking at composition and function, it is not the intendment of the drafter to make it an *ad hoc* committee. Because if it was their intention to make it an *ad hoc* committee, they will not go ahead to specify functions they are supposed to be performing, their composition and even defining what compounding is in their processes.

So, it is also clear that their intention is not to make it an *ad hoc* committee. It

is their sitting that they wanted to say the committee will do on *ad hoc* basis. So, I agree that we go with the amendment expunging “*on ad hoc basis*” from it and then subsequently, amend 144(2)(c), so that the whole clause could then stand, Mr Speaker.

So, if it pleases you, we will go ahead with it.

Mr First Deputy Speaker: Yes, Hon Members, I intend to flag this particular clause because the Minister is not here to provide the policy guidance. We want to be guided.

Yes, Hon Hottordze?

Mr Alexander Roosevelt Hottordze: Mr Speaker, from my understanding of this issue and the way they put it, “The Commission shall establish, on an *ad hoc* basis, ...” explains it all. This confirms the temporariness of the committee. So, as and when the issue happens, if it is aquaculture, they will pick members from aquaculture and if it is fisheries, the members will be selected from fisheries. But the committee itself is a temporary committee and nothing more than that.

11.35 a.m.

Mr First Deputy Speaker: Yes, Hon Members, I intend to flag clause 144, so that we take it when the Minister is here to provide a policy guidance. Accordingly, clause 144 is hereby flagged. We will defer the clause, so that we can all go and think through it.

Yes?

Dr Opoku: Mr Speaker, just one more comment. I think it is an *ad hoc* committee. The fact that it is an *ad hoc* committee does not prevent the Committee from having functions stated for them. So, I suggest that instead of “establish”, we replace with “constitute”. Anytime there is a need to form that Committee, it will be constituted, instead of using the word “establish”.

Mr First Deputy Speaker: So, the Minister would come and explain all these things and the policy rationale behind this.

So, yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, if I may, we should leave it like this in the spirit of making sure that offences in the fisheries industry are seen to be done with expeditiously. Because of that, the Commission is allowed to compose this Compounding Offences Committee and the membership is such that they are carefully selected from the Office of the Attorney-General and Ministry of Justice, a legal officer from the Fisheries Commission, and the Industry. Where it is a marine related case, it comes from the National Fisheries Association of Ghana (NAFAG). Where it is an inland case, the member comes from the Ghana National Aquaculture Association.

For me, it is a matter of policy and it is straightforward. I do not see where the problem is here. Whether they are meeting on an hourly basis or they are standing, the essence or the object is to

be able to handle these compounding offences and the composition is so fortified to be able to do that.

So, Mr Speaker, I call on you to put the proposed amendment—In fact, there are no amendments, so I call on you to put the Question on the current rendition and then we can take a vote and move on. There is no need to flag it.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Dafeamekpor, if you are forming a Committee with a permanent membership and with stated functions to perform, is that committee *ad hoc*?

Mr Dafeamekpor: Mr Speaker, even by our own Rules, it cannot be an *ad hoc* committee. *Ad hoc* committees are set up to deal with interim matters and their life comes to an end. So, to that extent—All right, Chairman of the Committee, let us flag it, like Mr Speaker has directed, and deal with it. We can come back at the Second Consideration Stage to tidy it up and then we could take it. So, Mr Speaker, we can make progress.

Mr First Deputy Speaker: Very well. Accordingly, clause 144 is hereby deferred.

Clause 145 — Functions of the Compounding Offences Committee.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment to 145?

Mr Oscar Ofori Larbi: Mr Speaker, respectfully, I think clause 145 emanates from clause 144, so if we are flagging clause 144, then anything as regards Compounding Committee should be flagged as well.

Mr First Deputy Speaker: Thank you very much. Accordingly, clause 145 is also deferred.

Mr Francis-Xavier Kojo Sosu: Mr Speaker, respectfully, I propose that clause 145 is clearly different from clause 144. So, the issues that we have raised in clause 144 do not affect clause 145 at all. It only has to do with whether it should be an *ad hoc* committee or not, but clause 145 is on functions. I believe that clause 145 as it is, is all right. There is no need for us to flag it, Mr Speaker.

Mr First Deputy Speaker: Hon Members, is it not the case that *ad hoc* committees normally work with terms of reference? So, let us abide by what the Minister is coming to say.

Mr Jerry Ahmed Shaib: Mr Speaker, if we freeze that, then clauses 146, 147 and 148, at least, I know up to 148, should all be—

Mr First Deputy Speaker: Clause 146 determines what will constitute the compounding offence. That one does not deal with the committee and the functions of the committee. So, when the offence occurs, then it will necessitate

the formation of the committee to deal with it. So, the terms of reference will be dependent on the kind of offence that occurred.

Mr Sosu: Mr Speaker, I believe that in the rules of interpretation, it is so clear that we can glean the intendment of the lawmaker from the law. There is no way we have these elaborate provisions in clauses 145 and 146 and still argue that it is an *ad hoc* committee. It is not.

Mr Speaker, I believe that this House, which is the Chamber that makes laws, has the power and the mandate to order that *ad hoc* basis be taken out of the law, so that it will be consistent with the rest of the provisions and we will not delay the Act.

Mr Dafeamekpor: Mr Speaker, that was why you directed, in your wisdom, that we should stand down clause 144 and we have established that clauses 144, 145, 147 and 148 are interlinked. So let us stand them down and do our homework. When we come back, it will be easy for us to take them so that they do not constitute a roadblock in making progress.

So, Mr Speaker, from what Hon Sosu said, it is the very reason we should stand down these provisions, then we can proceed with the rest. When the Minister returns and we engage the Table, we can rehash the provisions to suit the intendment of the House, then we can take them. This is because the to and fro is still eating into our time.

Mr First Deputy Speaker: Very well. Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, quite frankly, I do not know why we want to belabour this. I think the proposed amendment by Hon Sosu makes sense. So why do we not consider it and then make progress? It is a policy; it is straightforward—

Mr First Deputy Speaker: Hon Members, we have spent some time in this House. When it is an issue that borders on policy, because we do not sit in Cabinet, but the Minister does, the Minister should provide us with some policy guidance then we can proceed.

So, accordingly, clause 145 is also deferred, as well as clauses 146, 147 and 148.

Hon Members, we will move to clause 149.

11.47 a.m.

Clause 149 — Fisheries and Aquaculture Appeals Committee.

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: Any proposed amendment?

An Hon Member — *rose* —

Mr First Deputy Speaker: Yes, Hon Kabiru Mahama, then I will come to you, Alhaji.

Dr Mahama: Yes, Mr Speaker, I propose that since the Appeals Committee deals with Fisheries and Aquaculture Appeals Committee, the rendition of clause 149(2)(b) should rather be “one representative of the fisheries, of the fishing industry who is not an interested party in the subject matter of the appeal nominated by the Fishing and the Fisheries and Aquaculture Association.” And I make this mindful of the fact that clause 144(c), as I was proposing before the confusion, because this is a reference to both fishing and aquaculture and we cannot have only the explicit mention of the Fisheries Association in here. So, we must either put both or leave it open and, as and when the case may demand, we would select the relevant association.

Dr Jasaw: Mr Speaker, I think the proposal is all right, we can accommodate it. So, if he can propose a clear amendment, then we can adapt it.

Dr Mahama: Mr Speaker, I am proposing that under clause 149(2)(b), there should be a deletion of “National Fisheries Association of Ghana” and an insertion of the “Fisheries and Aquaculture Association”. Mr Speaker, I am not using them in capital letters.

Mr Speaker, let me provide a bit of background. I am saying that, I am contemplating that under the interpretation section, we would have Fisheries and Aquaculture Association, which would be defined to include the Standing Fisheries Association and the Standing Aquaculture Association, and any other as recognised by the Minister

or by the laws of the country. That will give us room for the evolving nature of the industry. But if we have it as given that these are the only two associations we have, then I would propose that we say “or”, as in “National Fisheries Association of Ghana” or “the National Aquaculture Association, as the case may be.”

Mr First Deputy Speaker: Yes?

Mr Dafeamekpor: Mr Speaker, before the Chairman comes in, if we want to go by the present amendment by Hon Kabiru Mahama, then we are leaving the discretion to the Minister to do either/or, and that can create a confusion.

Mr Speaker, let me assist. The National Premix Fuel Committee is a committee that is constituted by representatives from fishery associations and canoe owners; both inland and marine. One of the fights we are engaged in right now is that sometimes the association is split into splinter groups, and they get registered and apply to the Ministry for recognition. So, the locus of one of the representatives of the National Canoe Fisheries Association is being challenged by another group from inland, as we speak. So, once you recognise one association, we should be able to ensure that all the associations come under this national umbrella association. If you give either/or, then you—because a representative from one association could continue to be selected to serve on the committee to the detriment of the interest of the other association, which is an alternative. So,

as a House, our duty—Some of these provisions exist in the related previous laws.

So, going forward, I think we should be fine-tuning these provisions to bring clarity. Unless the Hon Member's proposal is that we should create another provision to accommodate the other association he speaks of. But we cannot do either/or situation in one provision. It may lend itself to abuse.

Some Hon Members — *rose* —

Mr First Deputy Speaker: I will come to the two of you.

Dr Mahama: Mr Speaker, the submission by the Majority Chief Whip, is well understood. The problem is that the Act itself recognises two associations. The first one recognised is the National Fisheries Association, and the second one recognised is the National Aquaculture Association. And if his submission is anything to go by, there is still going to be that discretion. So, we want to avoid this discretion and keep it open, so that it would be either the National Fisheries Association or National Aquaculture Association. That way, it makes the work of the Minister easier. But if we put specifically the National Fisheries Association, when there are matters bordering on aquaculture, it will not be right, because the heading of that particular section talks about fisheries and aquaculture appeals. So, Mr Speaker, if we are agreeing that these two should stand, then I will just propose that we say, “or

National Aquaculture Association, as the case may be.”

Mr First Deputy Speaker: So, Hon Chairman of the Committee, how independent is this particular appeal body taking into consideration clause 151? Because this is a body that will be presiding over a decision taken by the Commission or the Minister, and you want the Minister's nominee to be here, and you are again saying that there should be the industry player who is not affected by the subject matter.

Mr Ralph Poku-Adusei: Mr Speaker. Mr Speaker, there is even a bigger problem with the clause 149. Clearly, clause 149(2) reads:

“The Appeals Committee consists of

(a) one representative of the Attorney-General, not below the rank of a Principal State Attorney nominated by the Attorney-General, who is the chairperson;

(b) One representative of the fishing industry who is not an interested party in the subject matter of the appeal nominated by the National Fisheries Association of Ghana;”

But when we look at (3), the Minister shall appoint members of the Appeals Committee.”

So, the issue now is, which members out of (2) will the Minister appoint? So, we need to look at even the clause (3) as well.

Because if we saying that these are going to be the components of the Appeals Committee, we cannot say that the Minister would also go to the Office of the Attorney-General and appoint a representative to come and serve on the Committee. So, that is my challenge, Mr Speaker.

Mr First Deputy Speaker: I think I will have to engage you. The board members are nominated from various institutions. But at the end of the day, the President will have to appoint all of them. That is the same principle here, that after composing the members of the board, they must be appointed by the Minister.

So, it does not mean that if the Attorney-General nominates, that nominated person will not be appointed.

11.55 a.m.

The nominated person would have to be appointed—

Mr Poku-Adusei: Mr Speaker, but in the previous Parliament, there was a similar provision—

Mr First Deputy Speaker: You are a Member of Parliament, but if you are nominated by Parliament to represent on a Board, would there not be Board members appointed, including yourself?

Mr Poku-Adusei: Mr Speaker, the wording here, “(3) The Minister shall appoint members of the Appeals Committee.” is sitting on its own and it is not making any reference to clause 149(2).

Mr First Deputy Speaker: No, so, you read the provisions as a whole. You do not choose. Clause 149(2) tells you that this is how the Committee will be composed. After the composition of the Committee, then the Minister will go ahead and appoint the members of the Appeals Committee as composed in (2). This is a standard provision.

Mr Poku-Adusei: Mr Speaker, I am taking a cue from the Ghana Gold Board, Act. In that Act, there is clearly this similar provision there. But what it does is that it says: “the President shall appoint a chairperson and other members”. It specifies the person that the Minister will appoint—

Mr First Deputy Speaker: But read clause 149 (2)(a), which says:

“one representative of the Attorney-General not below the rank of Principal State Attorney nominated by the Attorney General, who is the chairperson;

Mr Poku-Adusei: Mr Speaker, that is a representative. It is not somebody that the Minister will appoint—

Mr First Deputy Speaker: But whoever is the representative will not act as just a member, but he will chair because of the legal background. So there is no room for the appointment of a chairperson again.

Mr Poku-Adusei: I think we are talking about two different things, but then I stand to be guided. What I am saying is that would the Minister have

the discretion not to accept the representative from the Attorney-General? That is one question. And the representative from the fishing industry, that is another question. If you say that he will appoint them, then it means that he has the discretion not to include them.

Mr First Deputy Speaker: No, look at the rendition. The Minister "...shall...". So, does "shall" give discretion?

Mr Poku-Adusei: Mr Speaker, no, "...appoint...".

Mr First Deputy Speaker: No, but you cannot read "...appoint..." in isolation. It says "The Minister shall appoint..." So, it does not give discretion to decide that I am not going to appoint or I would appoint. So, there is no element of discretion here. Or the lawyers, does it give a discretion?

Mr Poku-Adusei: There is a bracket from which he can appoint from. That is where he or she would have the flexibility.

Mr First Deputy Speaker: It means that if all these are composed, 2(a), (b) and (c), then the obligation is imposed on the Minister to appoint. You do not make a choice. That is why they did not say the Minister "may appoint". So, in this case, because they used the word "shall", the composition is binding on the Minister to appoint.

Yes, Mr Sosu?

Mr Francis-Xavier Kojo Sosu: Mr Speaker, I perfectly do agree with you, except that I want to make a proposal for the 2 (b) to clarify the issues that our Colleague brought out earlier. So, I propose that the 2 (b) now reads:

"One representative of the fishing and aquaculture industry, nominated by the National Fisheries Association of Ghana or Aquaculture Association, as the case may be"

Mr First Deputy Speaker: No, your rendition would rather make it complex. It is for a stated reason. That is why they say that the person should not be interested partly in the subject matter. I think this issue cropped up and that was the proposal. All we need to do is to say:

"...nominated by the National Fisheries Association of Ghana or Aquaculture Association of Ghana, as the case may be.

That was the proposal.

Mr Sosu: Mr Speaker, I am aware that the use of "or" in the drafting language, whether it is appropriate.

Mr First Deputy Speaker: So, it means that here, "or" is disjunctive. Meaning that between the Fisheries Association of Ghana and Aquaculture Association of Ghana, the nomination is either done by the Fisheries Association of Ghana or Aquaculture Association of Ghana. The problem we are giving them is how they will come together to say that this person should do the nomination or

not the other person. That is the problem we are giving them.

Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, the purpose for this provision is to suggest that depending on the nature of the subject matter of the decision that is coming on appeal, if it is related to inland fishery matters, then a representative from the Aquaculture Association of Ghana would be nominated. If it is about marine, then National Fisheries Association. But the issue you raised, which is that under clause 151, the decision of the Commission or the Minister, if somebody is aggrieved, is what will come on appeal under clause 149.

So, I agree with you that the Minister should not have the power to nominate or to have a representative here under his or her direct hand.

Mr Speaker, to cure that mischief, if the House will agree with me, we give an additional power to the Attorney-General. So that instead of making one nomination, he makes two. Because the provision gives him the power that whoever he nominates, becomes the chairperson of the Appeals Committee.

So, we give the power to the Attorney-General to nominate two persons. One becomes the chairperson, then (b) the other members of the Committee will reflect the nature of the subject matter to be nominated by these associations. Then we delete (c). So that when it is agreed, then the Minister will merely go

ahead and issue the appointment letters to these persons to go and proceed to hear the appeal. If the House appreciates what I am saying—

Mr Speaker, let me add that for some time now, we all glossed over it. Normally, when we give public servants the opportunity to make the nomination, we endeavour that they include women. So that the power to nominate one should necessarily be a woman. So that affirmative action would be carrying the women along. We have been doing that. If you give the direction, then the two persons to be nominated—

Mr First Deputy Speaker: Yes, let me hear from Mr Jerry Shaib.

Mr Jerry Ahmed Shaib: Mr Speaker, I agree with my Colleague. I think (c) should be deleted, especially in pursuant to what you raised. But my consideration is that we should look at (b), and make (b) read:

“...representatives of the fishing industry who are not interested parties in the subject matter of the appeal nominated by the National Fisheries Association of Ghana and the Aquaculture Association of Ghana”

Mr First Deputy Speaker: Well, Dr Grace Ayensu-Danquah?

Dr Grace Ayensu-Danquah: Mr Speaker, I would like to crave your indulgence on this. I am wondering if we can use the omnibus clause to fix this problem. Where you leave it open for the

future, because you know the Aquaculture industry is also developing. So, maybe other agencies or associations might spring up under the aquaculture heading. So, would an omnibus clause fix or cure this problem?

Mr First Deputy Speaker: Who will have the omnibus power? Is it the Minister or the Commission?

Dr Ayensu-Danquah Mr Speaker, the Minister.

Mr First Deputy Speaker: But you are saying that the Minister should not even nominate one person and you want to give the power again to the Minister to exercise under the omnibus?

Mr Francis-Xavier Kojo Sosu —
rose —

Yes, Hon Kabiru?

I will come back to you Mr Sosu.

Dr Mahama: Mr Speaker, I think we have two issues on the Board and we have to address one and move to the next one.

12.05p.m.

The issue raised by Hon Ralph is to the effect of the power of the Minister to nominate, which brings into issue the ability of the committee to have oversight in terms of appeal. And the second issue has to do with—

Mr First Deputy Speaker: He is raising issues with the (3).

Dr Mahama: Sorry, that is (3). The second issue has to do with clause (2)(b) which I raised and I think that if we bring closure to—

Mr First Deputy Speaker: I think his issue is no issue.

What is in issue now is (c) and (b), whether the Minister should have the power to nominate and then the (b)—

Dr Mahama: Mr Speaker, regarding the (b), let me propose this and whether you can put that, so that we—

I propose that one representative of the fishing and aquaculture industry, and I repeat:

“One representative of the fishing and aquaculture industry, who is not an interested party in the subject matter of the appeal, nominated by the National Fishing Association of Ghana or the National Aquaculture Association of Ghana, as the case may be.”

Mr First Deputy Speaker: When we were passing one of the Bills, the University Associations, we put them together to do a nomination and they came back to say that, if you would recall, there is always a struggle as to whether the nomination should be done by Teachers and Educational Workers' Union (TEWU) or the nomination should be done by other unions. So, it is a real difficulty and that is what we are trying to cure.

Mr Shaib: Mr Speaker, that is why I agree with you because that would bring—We have dealt with these fisherfolks over the period and we know that the moment you say it is coming from this place or that place, it would cause more problems. That was the reason I made the proposal that we should consider the two, instead of Rockson's submission that we should bring an additional person from the Office of the Attorney-General and Ministry of Justice. We should get both aquaculture and the National Fisheries Association, so we will still delete the (c) that would give the Minister the power to also nominate or appoint, so that, at all times material, we have both people with expertise.

Mr First Deputy Speaker: So, let us deal with this proposal.

Hon Sosu, are you dealing with this particular proposal?

Mr Sosu: Yes, I believe that, Mr Speaker, if we take a cue from what Prof has said earlier, it would probably resolve this because it is possible for us to use, “nominated from the association” and define “association” in the definition page to include the various forms of association that we have.

Mr First Deputy Speaker: Hon Sosu, in drafting, you try to cure a mischief that the law is likely to cause. Mostly by experience, when you put two associations together and you ask them to bring one nomination, there is a struggle as to whether the person to be nominated should come from “A” or

“B”. So, they have a difficulty getting a representation and without their representation, you cannot compose the committee.

So, having that at the back of our minds, why should we give this problem to the Fishing Association of Ghana and the Aquaculture Association of Ghana that the two of them should come together to do one nomination? So, how do we cure that particular problem?

Mr Sosu: Mr Speaker, that was not it; actually, my understanding is that the National Fisheries Association is definitely different from the Aquaculture Association and that depending on the subject matter, the Fisheries Association will nominate, or the Aquaculture Association will nominate. So, it is not the case that both the Fisheries Association and the Aquaculture Association will come together to nominate one person.

Mr First Deputy Speaker: This is an Appeals Board that is being composed, so it is not that, as and when the situation may be, you remove this person and bring another person. That is not my understanding. Do you understand? It is like composing a disciplinary committee; they are not going to sit on one issue and then they are dissolved. So, I am inclined to go with the proposal by the Deputy Minority Whip, so that, once we agree that we have to take out “(c)”, then we end the rendition to at:

“(b) One representative of the fishing industry who is not an interested party in the subject matter of the

appeal nominated by the National Fisheries Association of Ghana.

- (c) One representative of the aquaculture industry who is not interested in the subject matter of the appeal nominated by the Aquaculture Association of Ghana.”

Yes, let me hear the senior first?

Mr Dafeamekpor: Mr Speaker, you are right and that is an enhancement of the proposal of Hon Ahmed. So we will take away the power from the Minister to make any nominations because this committee will be reviewing her decision if a party is aggrieved or the decision of the Commission.

So, Jerry should own it; then we make progress. We have spent too much time on this one—*[Pause]*

Mr First Deputy Speaker Yes, Hon Dafeamekpor?

Mr Dafeamekpor: Mr Speaker, my humble position is that you have enhanced the proposition of Hon Ahmed, so he should own it and then we take it, so we can make progress. We have spent too much time on this proposal.

Mr First Deputy Speaker: Very well.

Yes, Hon Member?

Mr Poku-Adusei: This is just a quick contribution. We are dealing with these people because of the expertise they are

bringing on board at the Appeals Committee. But clearly—*[Interruption]*—Cannot you hear me? I said that, Mr Speaker, it has to do with the expertise that members from these associations will bring to bear on deliberations at the appeal level.

But clearly, that has already been taken care of in the Bill in clause 149(5):

“The Appeals Committee may co-opt an expert to attend meetings of the Appeal Committee but that co-opted member shall not vote on a matter for decision at the meeting.”

Then if you are dealing with expertise, that is an expert, so we can actually do away with that—

Mr First Deputy Speaker: Hon Member, I do not think we are speaking with specific reference to the mischief that we are trying to cure. The mischief that we are trying to cure is that the National Fisheries Association is one body and the Aquaculture Association is another body. Now, how to put the two of them together to bring one representation will be problematic.

Mr Poku-Adusei: Mr Speaker, I agree.

Mr First Deputy Speaker: Therefore, we should give them a representation each. How does a co-option address this particular issue? The status of a co-opted person is not the same as a member of the committee. A co-opted person does not have a right to vote.

Mr Poku-Adusei: What I am saying is that I am proposing a total deletion of that clause because I do not see—

Mr First Deputy Speaker: Which clause?

Mr: The clause 149(2)(b), the one that there is a—

Mr First Deputy Speaker: So, if you delete it, the person from the Office of the Attorney-General and Ministry of Justice will have to sit alone and constitute an appeal.

Mr Poku-Adusei: No, there are other members to be appointed by the Minister.

12.15 p.m.

Mr First Deputy Speaker: Yes, we need to make progress on this issue.

Mr A. Alhassan: Mr Speaker, initially, when I rose, I had a minor correction to make and it has to do with a typo, so if I can just make—

Mr First Deputy Speaker: Hon Members, what will happen is that when there is an issue, we resolve it before we move to another issue.

Mr A. Alhassan: Mr Speaker, then let me speak to that issue.

Mr First Deputy Speaker: Very well. If it is not on the amendment at stake, then do not take us to another issue.

Mr A. Alhassan: Mr Speaker, it is on the issue of the composition of the Appeals Committee.

Mr First Deputy Speaker: Yes, you have the floor.

Mr A. Alhassan: Mr Speaker, on the issue of the composition of the Appeals Committee, I just wanted to ask the Chairman of the Committee why they seem to have totally departed from the norm, especially in the establishment of the Appeals Committee. This is because if we look at the Electronic Transactions Act, 2008 (Act 772) and the Ghana Gold Board Act, 2025 (Act 1140), both have Appeals Committees, and the way the committee has been composed is entirely different from this. So, when we were considering, for instance, the Ghana Gold Board Act, 2025 we did not even spend a minute on the composition and I am sure it was the same in the case of the Electronic Transactions Act, 2008. Those ones, give the power—

Mr First Deputy Speaker: Hon Member, guide us as to how the composition should be.

Mr A. Alhassan: Mr Speaker, let me first of all, refer to how the Ghana Gold Board Act, 2025 couched its Appeals Committee, then I can come to that of the Electronic Transactions Act, 2008.

Mr Speaker, in respect of the Ghana Gold Board Act, 2025, Section 56 says:

“Composition of the Tribunal.

56. (1) The Tribunal consists of

- (a) a chairperson, who is
 - (i) a retired Justice of the Superior Courts of Judicature, or
 - (ii) a lawyer with at least fifteen years' experience in the regulation of the gold industry or the practice of alternative dispute resolution; and
 - (b) two other members with expertise in minerals and mining law or commerce.
- (2) The President shall appoint the chairperson and other members of the Tribunal.”

Now, in the case of the Electronic Transactions Act, 2008, it also has the same line of composition, but in that one, it says, “the Public Services Commission shall appoint the members”. So, when we leave it like this, I think we cure the issue of who should be represented and who should not.

Mr Speaker, that also comes to address a vital issue you raised. Because if I have a representative of an association sitting in the Appeals Committee, any member who is aggrieved by the decision of a Minister will definitely be a member of one of these associations. So, the leader of the association, who is represented in the Appeals Committee, will definitely be seeking to further the interest of the member who is disgruntled.

How do we cure that by bringing members of the association to serve on the Appeals Committee? To me, the two

associations should be left out of the whole discussion because each of them will further the interest of their members.

Respectfully submitted, Mr Speaker.

Mr First Deputy Speaker: Hon Members, with all due respect, this boils down to the independence of the Appeals Committee, as I raised earlier. This is because matters that the Commission or the Minister will take decisions on will emanate, one way or the other, either from the National Fisheries Association of Ghana (NAFAG) or Ghana National Aquaculture Association.

Now, you are again saying that when that matter goes on appeal, respective members of those associations should go and sit on the Appeals Committee. So, we have a situation where a Minister has taken a decision, and then you have a member of those associations going to reverse the decision of the Minister. A Commission has taken a decision, then you have members of the association going to reverse the decision. Do you understand? So, for me, it is problematic.

So, can we adopt the rendition in the Ghana Gold Board Act, 2025, so that it will allow, maybe, a lawyer with a minimum experience in the industry to be appointed in addition to the chairperson from the Office of the Attorney-General and Ministry of Justice. Then, at least, a woman with knowledge in the industry to also be appointed to make the three to sit on the appeal.

Yes, Hon Sosu?

Mr Sosu: Mr Speaker, I share in that thought. However, laws also emanate from practice. Currently, what is a practice in the fishing industry? So, this may go back into policy; that is what I think. Unless we have some further explanation from the Minister in respect of how they currently resolve issues as and when they come before them. I believe that maybe this rendition may be based on industry-specific practice, which may be a little bit different from what may be happening with the Electronic Transactions Act, 2008, as well as the Ghana Gold Board Act, 2025. That is what I think about this one right now, Mr Speaker.

Mr First Deputy Speaker: I will take one more contribution, and then we will decide the way forward.

Yes, Hon Kabiru?

Dr Mahama: Mr Speaker, I am also persuaded by your statement and that of my Hon Colleague from Yendi. I seem to also concur with Hon Sosu that if we truly want to have an independent appeals board or Appeals Committee, then even the nomination from the Minister and every other thing will be questioned. So, I suggest that we defer it back to the Minister and the draftspersons to tidy it up.

Mr First Deputy Speaker: Hon Member, we agree that we can give that power to the Minister to nominate somebody to sit on his own appeal, so we have crossed that particular hurdle.

Dr Mahama: Mr Speaker, I am not saying that they should nominate. I am just saying that, that and many other issues are coming up, so I was just suggesting that if the legislative draftspersons could look at it and then—

Mr First Deputy Speaker: Hon Members, can we adopt the rendition in the Ghana Gold Board Act, 2025?

Yes, Hon Jerry Ahmed Shaib? Then I will come to the Chairman of the Committee.

Mr Shaib: Mr Speaker, I would have agreed with you that we should agree with the rendition in the Ghana Gold Board Act, 2025. Save that, like Hon Sosu said, with fisheries, the expertise is a bit different. Therefore, the only part that I think you have made a statement on and we should consider is the appointments by the Minister. But besides that, we can look at some of the bodies that we have indicated here already like the National Fisheries Association of Ghana; we need them. We need the Ghana National Aquaculture Association as well. Then we can do a hybrid of what is in the Ghana Gold Board Act, 2025 and here. I am sure that would be better.

Mr First Deputy Speaker: Hon Jerry Ahmed Shaib, these are associations working under the Commission. Do you understand? A Commission has taken a decision; the body that should sit to uphold or reverse the decision of the Commission must be a higher body. Now, you are picking from the association to preside over appeal of the Commission. That is where the difficulty is.

We can be guided this way: we maintain the clause 144 (1) (a), so that whoever comes from the Office of the Attorney-General and Ministry for Justice will be a chairperson. Then (b), we say a lawyer of, maybe, five years standing at the Bar with experience in fishing and aquaculture. Then we say (c), a woman with knowledge in fishing and aquaculture. As for that one, the draftspersons can put it nicely.

Dr Jasaw: Mr Speaker, I agree with the principle that this appeals body should be independent and should be seen to be independent. Representatives of the associations may introduce some biases. So, to that extent, I agree with the application by my Hon Colleague from Yendi.

12.25 p.m.

However, I want to draw attention that, in practice, these disputes in that industry are settled in informal ways.

Then two—

Mr First Deputy Speaker: Hon Chairman?

Dr Jasaw: Mr Speaker, just one more. Secondly, we have knowledge institutions such as the Environmental Protection Authority (EPA), Water Resources Commission and related bodies, Ghana Maritime Authority (GMA), that may be useful in providing information and expertise that can help in the appeals process. So, in considering this composition in line with the proposal from the Hon Member from Yendi, I

think that we should avert our minds to this expertise that will be useful in settling the appeals cases.

Mr Speaker, I so submit.

Mr First Deputy Speaker: Yes, Hon Jerry Ahmed?

Mr Jerry Ahmed Shaib: Mr Speaker, I do not know the general constitution of the Judicial Council, but I also believe that there are judges on the Judicial Council. Would that respectfully mean that because there are judges, they will definitely — and Mr Speaker, who is going to appoint —

Mr First Deputy Speaker: In this case, the Judicial Council, they hear matters; it is not on appeal. But this one, we are talking about appeal against a decision of a Minister. That is why the issue of settlement of the dispute does not come in. Because for there to be settlement, it will come in before a decision taken by the Minister. So, if one is aggrieved by the decision taken by the Minister, then one is appealing against the decision of the Minister.

Mr Shaib: Mr Speaker, I agree with you on all of that. Because I understand that you do not want us to have a judge in his own cause. But who is going to appoint the lawyer of five years' standing? Who is going to appoint all the members therein?

Who is going to appoint them, Mr Speaker?

Mr First Deputy Speaker: Hon Jerry Shaib, who appoints the judges? It is the President. So, in this case, we can decide that they are also appointed by the President or they are appointed by the Minister.

Yes?

Mr Dafeamekpor: Mr Speaker, you are an advocate for consistency. As a House, how we draft certain provisions that feature commonly in legislation that we pass; this is one of them. Mr Speaker, I am looking at the Standards Authority Act that we passed recently. Indeed, 2022, it is not too old.

Mr Speaker, this was one of the elaborate laws that we passed and under Section 40 — So myself, listening to the arguments, I am beginning to appreciate why we even want to establish a separate Appeals Committee, because when I checked the Narcotics Control Commission (NACCOC) Act and I checked the Office of the Special Prosecutor (OSP), we give all these things to the Board. When there is an appeal against the decision, these are administrative decisions; when somebody is aggrieved, then they appeal to the Board.

Then under the Standards Authority Act, we give the mandate to the Board to set up an Appeals Committee within a certain number of days upon receipt of the complaint. Then we give the Board the mandate to make appointments of members of the Board from within the Board. So, for instance, under Section 40, this was what this House did in matters of this nature. Mr Speaker, it says:

“Appeals against decisions of the Authority.

- (1) A person dissatisfied with the decision of the Authority may appeal to the Board against the decision.
- (2) The appeal shall be made within twenty-one days after the appellant has been informed of the decision.
- (3) The Board shall, within twenty-eight days after the receipt of the appeal, set up an Appeals Committee chaired by a member of the Board to determine the appeal.
- (4) The Appeals Committee shall, subject to the rules of natural justice and any procedures that may be prescribed by the regulations determine the procedure of the Appeals Committee.
- (5) The Appeals Committee shall determine an appeal within twenty-one days after the submission of the appeal and may
 - (a) affirm the decision of the Authority;
 - (b) vary the decision of the Authority; or
 - (c) revoke the decision of the Authority.
- (6) A person who is dissatisfied with the decision of the Board may apply to the High Court for a review.”

Mr First Deputy Speaker: Yes, but the difference here is that in this particular case, in the Bill that we are considering, decision of the Minister is being appealed against. So, you cannot refer a decision of the Minister to a Board Committee to reverse.

Mr Dafeamekpor: Mr Speaker, that is why I think that we should stand this down as well.

Mr First Deputy Speaker: Very well. If that is the pleasure of the House.

Mr Dafeamekpor: And engage the Minister and the draftspersons so we can disaggregate and finetune it.

Mr First Deputy Speaker: Clause 149, also deferred.

Mr Dafeamekpor: We should borrow from other provisions to simplify the matters. I think so, Mr Speaker.

Mr First Deputy Speaker: Clause 150.

Clause 150 — Tenure of the Office of Members of the Appeal Committee

Yes?

Mr A. Alhassan: I was having something to do. It is just a typo so that we can correct it.

Mr First Deputy Speaker: The clause is deferred. We will not take any further contribution on it.

Clause 150 — Tenure of the office of members of the Appeals Committee

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House.

Yes?

Dr Fred Kyei Asamoah: Mr Speaker, with clause 150(1), the term of “A member of the Appeals Committee shall hold office for a period of three years...”. I am proposing that when you go to clause 8, the term of office of the members of the Governing Board is for a period of four years. So, for consistency and the term of office of the Committee that will be working along the same line—

Mr First Deputy Speaker: No, in this matter, you must avoid a situation where all of them are going en bloc.

Dr Asamoah: Yes. So here, it is saying for a period of three years.

Mr First Deputy Speaker: Yes?

Dr Asamoah: While that of the Governing Board is for a period of four years.

Mr First Deputy Speaker: Yes, so if the Governing Board is four years, it means that at the time that some of the appeal members will be going, the Board will still be in existence. Then another appeal Board comes, then members of the Board go. So that it will not appear as

if the Board's term has ended and the term for the Appeals Committee has also ended. That is why there should be some differences.

Hon Member, you are not getting it.

Dr Asamoah: Yes, I do get it, Mr Speaker. In that case, then we could increase it to two more terms. So that we can have an overlap. For if in this case, a board member is there for eight years, we can have an overlap; we can have an overlap of four years.

Mr First Deputy Speaker: For instance, the Board has a tenure of office of four years. If we want this Appeals Committee to also have a tenure of office for four years, it is possible that at the time that the Board is going, the term of the appeal has also ended. You understand?

But they do not want it to be coterminous. You are not getting the point. Let us say you are a member of the appeal and I am a member of the Board. So, at the time that your tenure of office has ended, my tenure of office has not ended. So, if you are eligible, then there will be re-election. So, at the time that my tenure of office as a board member has ended, the appeal board is in place. So, if we make it coterminous — Do you understand this?

Dr Asamoah: Mr Speaker, I agree. But in agreeing to this, that is why I am suggesting instead of one more term only, then we can add two more terms.

Mr First Deputy Speaker: We have never gone beyond two more terms before. So, the tenure of office is eligible for another term only. By practice and in all laws.

Any further questions?

12.35 p.m.

Clause 150 ordered to stand part of the Bill.

Clause 151 — Appeal from decision of the Commission.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: Yes, it is for the consideration of the House. Yes?

Mr Poku-Adusei: Mr Speaker, 151(5).

“A person who is not satisfied with a decision of the Appeals Committee may, within 60 working days...”

Mr Speaker, I want to propose that we leave it at 60 days, not working days, to avoid the computation.

Mr First Deputy Speaker: Yes?

Mr Dafeamekpor: Mr Speaker, I support the present amendment.

Mr First Deputy Speaker: Very well. Is that the sense of the House? So, the proposal is to *delete* working.

Question put and amendment agreed to.

Clause 151 as amended in (5) ordered to stand part of the Bill.

Clause 152 — Information or documentation to be true, complete and correct.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment?

Clause 152 ordered to stand part of the Bill.

Clause 153 — Woeful damage to fishing vessel, gear or other fishing appliance.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment?

Yes, Hon Member for Yendi?

Mr A. Alhassan: Mr Speaker, I was going to suggest that if you read 153(1), “a person who willfully damages or destroys a fishing vessel...”, Mr Speaker, in law, it is always safe to use negligently as well, when you are going with willfully, because someone may damage another person’s vessel, not willfully, but negligently. Would the person be allowed to go scot-free?

Mr First Deputy Speaker: Hon Member, your proposal is right. I have litigated in this House as to whether we should be legislating, creating offence, saying willfully, because already the law says two things constitute a crime, the act and the intention.

So, for me, the proposal would have been to *delete* the word “willfully”. So, the rendition would be;

“a person who damages or destroys a fishing vessel, gear or any other fishing appliances, which belongs to another person, commits an offence and is liable on summary conviction...”,

Then the rest of the rendition should follow.

Yes?

Mr Sosu: Mr Speaker, the problem is, when we leave the rendition like that, then the *mens rea* is a little bit missing, because if we simply say a person who damages, the damage could come inadvertently—

Mr First Deputy Speaker: So, I can engage you as a lawyer. If somebody steals, the person commits an offence. Does it mean that if the person did not willingly steal, the *mens rea* is taken? It is something that is already embedded in the commission of a crime.

Mr Sosu: Mr Speaker, I perfectly agree.

Mr First Deputy Speaker: So, the element of the intention, whether it is stated expressly or not, for you to succeed in convicting somebody, you must prove the intention. You cannot just prove damage without the intention.

Mr Sosu: But, Mr Speaker, the challenge here is that, well, I think I will defer to you, Mr Speaker.

Yes?

Mr Shaib: Mr Speaker, I am not sure if we have really considered the meaning of willful. It does not mean that it is not intentional. Mr Speaker, willful means done intentionally, or determined to do exactly as you want. So, willful should be there. It does not take anything away. It actually says that you did it intentionally. The moment you change it, it will rather change—Mr Speaker, I do not know if you were listening.

Mr First Deputy Speaker: I am listening to you very carefully.

Mr Shaib: Mr Speaker, I am saying that if—I have just looked at the Cambridge dictionary and we are supposed to look at the word willful.

Mr First Deputy Speaker: What is the meaning of willful?

Mr Shaib: It says done intentionally.

Mr First Deputy Speaker: That is the meaning of willful and my point is that for every crime, there must be an element of intention. When you leave the word, willful here, it would mean intentionally. Intentionally because nothing is a crime if the intention is not there. So, what is this done intentionally doing? Is this serving a purpose? Because already, if for instance, if you are taking me to court, that I damage or destroy a fishing vessel, unless you are able to establish that that damage is intentional, is done intentionally, is done willfully, you cannot sustain a conviction against me. Do you understand? It is already an element that you have to prove. It is one of the ingredients.

Mr Shaib: Mr Speaker, but there are instances that damages are not intentional.

Mr First Deputy Speaker: So, when it is not intentionally caused, it cannot be willfully.

Mr Shaib: Well, but this is just reiterating the point that this was intentionally done and that is why it amounts to crime.

Mr First Deputy Speaker: Yes, Hon Sosu?

Mr Sosu: Mr Speaker, very respectfully, I believe that the rendition would not lose anything if we were to

leave willfully there. Now, what it means is that, like you rightly said, it means that it imposes a double obligation. That is what it is. Without, first of all, without—

Mr First Deputy Speaker: Well, I will have a difficulty creating an offence that will impose double obligation. Instead of the general principle that single obligation is imposed. Do not do this, you have done it. Once it is established—

Mr Sosu: Mr Speaker, what that means is that I am sure that at sea, a lot of things happen. People may deliberately want to cause damage to people's vessels for their own intended purposes. What the law is saying is that beyond the fact that we know that when one causes a damage, the damage could be either intentional, unintentional, it could be negligent, or whatever it could be, the only time that one carries a criminal conviction is when it is willful. In other words, there is an extra responsibility.

Mr First Deputy Speaker: Tell me instances where a criminal conviction is carried if the act is not done intentionally. Just one instance.

Mr Sosu: Well, there is no instance like that.

Mr First Deputy Speaker: So, you agree with me that there is no instance like that?

Mr Sosu: No, but Mr Speaker, my issue is that—

Mr First Deputy Speaker: So, Hon Sosu, the word here is much I do about nothing.

Mr Sosu: By way of emphasis.

Mr Shaib: I want to give you an instance. Somebody throws a stone, hits your windshield, the stone was not directed at you. The person is 18 years and above. They were having some sort of argument and then the person is arrested, and prosecuted. The person's stone-throwing was not directed at your car. But it has caused the damage. The damage was not intentional.

Mr First Deputy Speaker: Yes, so when the damage is not intentional, the person has not committed any offence. That is what it means in law.

Mr Shaib: The person has committed an offence. The police have even arraigned the person before court.

Mr First Deputy Speaker: No. The police can arrest you on suspicion. But when you are taken to court, and it is established that your act is not done intentionally, then it will not constitute an offence. There is an act, but the intention is not there.

12.45 p.m.

So, why do we say two things constitute an offence? Both must be present at the same time. But what is the sense of the House?

Hon Sosu, I have heard you a lot on this issue.

Yes, Hon Member?

Mr Sosu: Mr Speaker, I would like to draw your attention to section 11 of the Criminal Offences Act, 1960 (Act 29) that defines intent. That when a person does an act for the purpose of causing an event, he will be deemed to have caused the event, whether in fact or indeed he intended to commit that event. So, there are general provisions on intention. I believe that this one, perhaps, is just stretching it further that beyond the general provisions—

Mr First Deputy Speaker: Hon Sosu, in crafting law, you cannot craft the law which is a criminal offence and do away with the Criminal and Other Offences Act, 1960 as well as the Criminal Procedure Code, 1960. You must juxtapose it.

Mr Sosu: Mr Speaker, I defer to you on this one.

Mr Poku-Adusei: Mr Speaker, indeed, it is not every offence that you must establish an intention. Mr Speaker, in the offence of murder, when there is no intentions, it becomes manslaughter. So, clearly, your rendition that we do away with the “willful”, what it will mean is that one can be caught by this Act if one is reckless and, at the same time, if one did it willfully. So, it is either we are deleting the word “willful” or adding reckless to it—

Mr First Deputy Speaker: Hon Member, what it will mean is that if a person is reckless, that is negligence and negligence is in civil realm. But here, we

are creating a criminal offence for which the punishment is imprisonment or fine. Do you understand?

Mr Poku-Adusei: Recklessness, *per se*, is not negligence. Recklessness is punishable in criminal law; that is why one will be convicted for manslaughter. Otherwise, one can never be convicted for manslaughter. In manslaughter, recklessness must be established, not intentions. So, clearly, recklessness does not defer you to civil realm.

Mr First Deputy Speaker: Well, Dr Mahama wants to help you.

Dr Mahama: Mr Speaker, Section 11 of the Criminal Code states that every man intends the probable and natural cause of his action and it is given.

So, once a person intends the natural and probable cause of his or her action, intention can be presumed until otherwise. And I think that if the law creates an act as an offence, it is for us to assume that anyone who commits it intended to cause that particular act. If one acts willfully, then they must go ahead to provide that the person actually knew it was a crime; he wanted to do it and he took positive action to do that particular act. So, I think that we should live it without the willful act of the person. Let us just create the crime, the punishment, the liability and that it is, Mr Speaker.

Mr Dafeamekpor: Mr Speaker, I have listened to all the views and I think the problem is from the headnotes. And that is all you are against. So, the

controlling adjective there should go away. The “willful” should go. What are we saying? Damage can be caused to vessels and fishing gears. But it can also be done under lawful authority. So, what this house wants to do is to say that—

So, I propose that we *delete* “willful” and *insert* “unlawful damage to fishing vessel, gear or other fishing appliance”.

Then in the body of the provision, Mr Speaker, we commence by saying clause 153(1):

“A person who unlawfully damages or destroys a fishing vessel, gear or any other fishing appliance which belongs to another person commits an offence and is liable on summary conviction”.

Mr Speaker, when you were here, you one day argued that summary conviction means the person will go through the rigour of trial. At which trial, all the elements of the offence will have to be established. So, there is no need for us to insert “willful” because that is why the law is saying that, upon summary trial, a person is liable on summary conviction.

Summary conviction means trial has occurred; evidence has been led and recounted and the court has come to a determination and convicted the person.

Mr First Deputy Speaker: Hon Members, the difficulty that I have is legislating on ingredients that you have to establish in law.

Mr Dafeamekpor: I agree.

Mr First Deputy Speaker: If you look at our Criminal Offences Act, stealing is there and underlined. They did not say unlawful stealing. So, the offence is stealing. So, this one, it will be damage to fishing vessel, gear or other fishing appliances. Then, when you come to the body, then it will be:

“A person who damages, destroys a fishing vessel, gear or any other fishing appliances which belongs to another person commits an offence and is liable on summary conviction”.

Because it is only when a person is liable, and for a person to be liable, they must establish that person has done the act and the act was done intentionally, which is willfully. So, we can delete the word “willful” in the headnote, as well as in the provision.

Mr Sosu: Mr Speaker, I support the proposal that we delete “willfully” from the provision.

Question put and amendment agreed to.

Clause 153 as amended ordered to stand part of the Bill.

Clause 154 — Unlawful import and export of fish

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr Afriyie: Mr Speaker, with respect, I observe that sub-clause (1) as

we have it currently is incomplete in rendition. If you may, Mr Speaker—

“A person shall not import into or export from the country, fish in commercial quantities unless that person has been granted a permit by the Minister on the advice of the Commission.”

Mr Speaker, the reference to fish alone over here—Under clause 156, you will notice that reference has been made to export of fish, fishery or aquaculture products.

Mr Speaker, I beg to move that, after “fish”, *insert* “fishery and aquaculture products”

So, we will be consistent and not to create a lacuna.

Mr First Deputy Speaker: Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, the present proposed amendment actually enhances the provision, so I agree with it.

Mr Dafeamekpor: Mr Speaker, I am helping the Chairman in his absence. So, I believe that it also brings consistency to the phrases that we employ.

Mr First Deputy Speaker: So, reference was made to which clause?

Mr Dafeamekpor: Mr Speaker, clause 154(1) in particular.

12.55 p.m.

So, instead of “fish”, we add “fishery and aquaculture products” as contained in the head note of clause 156. So, we have “fish, fishery and aquaculture products.”

Mr First Deputy Speaker: Very well, I intend to refer it to the draftspersons to tidy it up. I will put the Question, while I refer it to the draftspersons to tidy up

Clause 154 is ordered to stand part of the Bill.

Clause 155 — Unlawful interference with aquaculture establishment

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr Dafeamekpor: Mr Speaker, we learnt these things from you.

Mr Speaker, you would note that the headnote of this provision we just carried, that is clause 154, they qualified it with “unlawful” and not just “interference”. It is similar to the one we considered under clause 153—

Mr First Deputy Speaker: Yes. Look at the rendition as captured in clause 151 and clause 153 and see whether it is one and the same.

Mr Dafeamekpor: Mr Speaker, they are similarly couched. They are looking at the unlawful conduct—

Mr First Deputy Speaker: No, if you look at this, clause 155, it says:

“A person shall not, without a valid and applicable aquaculture licence...”

So, this one envisages a possibility of lawfulness, that is why they captured this particular rendition this way.

Mr Dafeamekpor: All right.

Clause 155 to 164 is ordered to stand part of the Bill.

Clause 165 — Research vessel

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: Hon Members, it is for your consideration.

Yes, Dr Mahama?

Dr Mahama: Mr Speaker, I am just wondering if the Chairman of the Committee could provide some explanation to this kind of right the Commission has to set aside a law passed by this Parliament. Although I am mindful of Articles 23 and 296, as you referenced yesterday, because it is administrative, but I feel something is not right. If a law is being passed by this Parliament and a decision is being taken

that the Commission can set aside any provision of the law if it deems so fit, can the Chairman of the Committee provide some explanation to that?

Mr First Deputy Speaker: Hon Member, what is this provision saying? The headnote says, “Research vessels”. So, it is not fishing vessels or involving fishing activity, but they are conducting scientific investigation and clause 165(1) reads that:

“For the purpose of a research or a scientific investigation, the Minister may, on the advice of the Commission, in writing, exempt a vessel or a person from all or any of the provisions of this Act.”

It is for the purposes of research only.

Dr Mahama: Mr Speaker, there is an agency responsible for issues of research and academic exploits and if without recourse to those agencies, the Commission can just—

Mr First Deputy Speaker: Which agencies?

Dr Mahama: Mr Speaker, we have Ghana Tertiary Education Commission (GTEC). If it has to do with scientific research in an area, then the various centres for scientific research are authorities. I do not think it is proper that the Commission, under the reason of research or scientific exploration, can just set aside a provision of law. There must be something in the law that makes reference to maybe recommendation from those respective agencies.

I so submit.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker I did not quite get convinced with his argument and I reject it. I think that we should allow the current rendition to stay.

Mr First Deputy Speaker: Yes, Mr Sosu?

1.05p.m.

Mr Sosu: Mr Speaker, I share the sentiment of my Colleague but it is okay for a law to create an exemption where necessary. And for the purposes of not abusing that exemption that is why the rendition is the way it is, that requests will be made and it is going to be upon the advice of the Commission in writing before they are exempted.

Mr Speaker, when you look closely at the Object of the Bill, particularly, you look at the object of the Bill, the Long Title and its application, obviously, the Bill does not intend to regulate the work of “research vessels” within that context. I believe that the rendition is appropriate as it is Mr Speaker.

Mr First Deputy Speaker: Hon Kabiru, you raised the issue. These are the views of Members.

Dr Jasaw: Mr Speaker, I think I now appreciate where Hon Kabiru is coming from. But Mr Speaker, this is a “research vessel”; it is not for any other fishing expedition. It is for scientific purpose

that will generate data and science expertise that will help us govern the industry properly, so it is safer that there is an exemption for these specific vessels and I think that the current rendition should stay Mr Speaker.

Mr Andrew Asiamah Amoako: Mr Speaker, may I find out from the Chairman if that is the standard position in the industry?

Mr First Deputy Speaker: Hon Members, for instance, if the Food and Agriculture Organisation is conducting scientific research into fishing, would we want them to go through the Ghana Tertiary Education Commission (GTEC)?

Dr Mahama: Mr Speaker, they can go through the Centre for Scientific and Industrial Research. Yes. So that is the point I am making.

Mr First Deputy Speaker: Is that what is done internationally in fishing waters?

Mr Asiamah Amoako: Mr Speaker, is that the standard thing that goes on?

Mr First Deputy Speaker: Hon Asamoah?

Dr Fred Kyei Asamoah: Yes, Mr Speaker.

We know vessels can come into the country on our shores for other activities aside aquaculture and fishery issues. So, if we can qualify it—because people could come into our zones to deal with

fisheries or aquaculture on the verge of stating that it is for research but they will be engaging in aquaculture. So, we will have to qualify it that “for the purpose of research or scientific investigation”.

Mr First Deputy Speaker: On that note, I agree with you perfectly that we should tie it down to research into a scientific investigation into fishing and fishing activities. Yes, very well. And then after exemption, in line two, we should also say “a research vessel or a person from all or any of the provisions of this Act”. Because if you say “exempt a vessel”, it is as if it is all vessels that can be exempted contrary to the head notes. So, the new rendition should be “for the purposes of a research or a scientific investigation into Fishing and Aquaculture, the Minister may on the advice of the Commission in writing exempt a research vessel or a person from all or any of the provisions of these Acts.”

Mr Acheampong: Mr Speaker, if I may ask, can the Minister responsible for Fisheries and Aquaculture on her own, exempt the payment of fees? They cannot do that. They would have to work in a consultation with the Ministry of Finance and the Ministry of Finance will direct the Ghana Revenue Authority (GRA)—they have something called Practice Notes so in their Practice Notes, they can do that but on their own, they cannot exempt payment of fees. They cannot do that.

Mr First Deputy Speaker: Yes?

Mr Shaib: Mr Speaker, I support my Colleague and this is because when it has to do with research on the high seas, a lot of things happen— a lot. There are instances of things a lot happening in Prampram. And if care is not taken and we do not constitute a proper body and we just leave it to the Minister, although the rendition is that “for the purpose of a scientific risk investigation, the Minister may on the advice of the Commission”— It is just a humble prayer that we should relook at this and have a solid body.

Because you see, just as my Colleague raised, there are issues of taxation so we may need the Ministry of Finance to also be a part of this discussion. In fact, we shall need, so let us, the reference I made, we can go to Prampram—

Mr First Deputy Speaker: Hon Members, I think the “payment” that we referred to are related to the license being issued. So, my understanding of this provision is that when it is a research vessel, or a vessel conducting an investigation into, for instance, fish poisoning, they will not apply and get license before they do so. So, if they will not go through the licensing requirements, where lies the payment?

Yes, Hon Rockson?

Mr Dafeamekpor: Mr Speaker, you are right.

Mr Speaker, let us read clause 1(1) of the law— “Application of the Act.”

“(1) Unless otherwise specified, this Act applies to all

(a) areas over which the Republic exercises jurisdiction or sovereign rights;

(b) fishing and fishing related activities, and then any other activity or matter within the scope of this Act;

(c) persons, vessels, vehicles, aircrafts, export facilities...”

Mr Speaker, the provision in question, which you eruditely interpreted, is that clause 165(1), “for the purpose of a research...” subject to the amendment carried by scientific investigations, the Minister, which in this case, is the Minister for Fisheries, “...may, on the advice of the Commission, in writing, exempt a vessel or a person from all or any of the provisions of this Act.” So, it is not speaking about tax matters at all. **[An Hon Member: All matters]**—Yes, all matters.

In this law, we have not done anything in respect of the grant of taxation or the waiver of taxation and all. So, I agree with you that the Minister can be mandated under this provision to waive the legal regime for procuring licenses in order to do fishing. If the purpose for which they want to conduct any activity at all is for scientific data gathering; that is my understanding.

Mr First Deputy Speaker: So, Hon Members, let us look at it this way; I am just giving an example. Let us say

Parliament is part of Ghana Water, and there is an information that fish around this area is poisoned, as a result of which there is a need for even our own Council for Scientific and Industrial Research to conduct a scientific investigation into as to whether or not indeed the fishes are poisoned.

1.15 p.m.

For that to be done, you want them to go through the requirements of acquiring the licence before they go in to conduct the investigation? Then, by that time we would all have been dead. That is why the power is then given to the Minister to take an urgent decision to address the matter, without allowing that particular vessel coming to conduct the investigation, to go through the rudiment of acquiring the necessary documents to be able to do so. Yes, Hon Acheampong?

Mr Acheampong: Mr Speaker, that is why I referred to the practise notes of Ghana Revenue Authority. When they bring in perishable goods, they cannot get the time to go through all the processes, so they grant the exemption and then they send it to the Ministry for ratification.

Mr First Deputy Speaker: Hon Acheampong, for this one, we are not talking about perishable goods; we are talking about our own life.

Mr Acheampong: This is an example that I made. But, Mr Speaker, they are even supposed to pay some licencing fee and it comes under the Fees and Charges

(Miscellaneous Provisions) Act, 2022 (Act 1080).

Mr First Deputy Speaker: Yes, that is why I am saying that—

Mr Acheampong: The Ministry must make an input, give those numbers to the Ministry of Finance and the Fees and Charges (Miscellaneous Provisions) Act, 2022 (Act 1080) must be brought to this House for approval.

Mr First Deputy Speaker: So, Hon Richard Acheampong, the discretion being given to the Minister here does not relate to where a vessel has perishable goods; they are talking about scientific investigation. So, for instance, the example that I gave that somebody poured some chemical in Ghana's water and as a result of it, it is poisoned and life is threatened; in a situation like that, do you want the Minister to go through the process of taking all the deep notes? But that is the very thing the law is talking about. It reads, "For purposes of a research or a scientific investigation...". It is only for the purposes of research and scientific investigation, nothing more.

Mr Dafeamekpor: Mr Speaker, in fact, the Minister will not be doing so *suo moto*. The Minister may be doing so based on the advice of the Commission, so this is a real regime in place. So, Mr Speaker, put the Question and let us make progress.

Mr First Deputy Speaker: Hon Members, another example is that in our fishing waters, there is oil spillage and the international organisations are

coming to research and conduct investigation into that particular matter. Do we want them to go through the rudiment of acquiring licence and making payment before that is done?

Mr Dafeamekpor: Mr Speaker, you are right. Put the Question and let us go.

Mr First Deputy Speaker: Dr Mahama, you raised the issue.

Dr Mahama: Mr Speaker, the Chairman of the Committee, who happens to be my lecturer—*[Interruption]*—Yes, and I must put on record, knows the point we are making that when it comes to any research, ethical standards are required. There are rules and regulations, whether it is research related to pandemic, or spillage of oil in the Red Sea or on the high seas, there are rudiments guiding research. There are rules guiding industrial research or academic research.

Mr Speaker, I agree that the law should have flexibility for the Minister to waive certain provisions of the act to allow research to happen. But under the current—

Mr First Deputy Speaker: Dr Kabiru Mahama, if there is an outbreak of a disease and there is going to be research conducted into it, would you go by the procedure that you are spelling out?

Dr Mahama: This particular law has made provision for *force majeure* and what we can do under that. But I am saying that to say that the Minister, in his

determination with the Commission, says that there is a problem that has to do with scientific or industrial research, so he is suspending this Act—That is the meaning of it. He is suspending the Act and that every provision in this particular act is not—*[Interruption]*—I am saying that when we say we are waiving provisions of the Act, we are suspending the provisions of the Act—*[Interruption]*—I know, I am speaking in context. So, when I am using the words, they should take time and listen.

He is saying that he is suspending this particular act in relation to scientific research. Mr Speaker, I think that, it is too broad and the net is too wide for the Minister.

Mr First Deputy Speaker: Move the amendment and let me put a Question on it.

Dr Mahama: Mr Speaker, does he want to—

Mr Dafeamekpor: Mr Speaker, let me allay his fears. I see the perspective he brings, but under clause 169, we have given an elaborate regime for which the Minister is mandated within 12 months, upon the coming into effect of the law, to bring regulations. So, if the concern is that the power to waive is discretionary depending on the circumstances, the regulation will itemise the conditions under which the waiver will be granted—

Mr First Deputy Speaker: Hon Members, for me, when it is research into fishing, the Regulator cannot be Ghana

Tertiary Education Commission (GTEC) or Council for Scientific and Industrial Research (CSIR); the Regulator is the Fisheries Commission. Is that not the case? And they are saying that the Minister, on the advice of the Fisheries Commission may—because the Minister will not just get up to do something, on the advice of the Regulator, which is the Fisheries Commission.

Dr Mahama: Mr Speaker, maybe I am wrong, but when it comes to research, especially research within, the Regulator is not the respective commissions. Research in the country is regulated by respective authorities. To say that when it comes to research on fishing matters—

Mr First Deputy Speaker: You see, you are picking the word research in isolation. Probably, that is why you are running into difficulty. Now, if CSIR wants to research into fishing, under normal circumstances, but not for this provision, they would need the appropriate licences from the Regulator to be able to conduct that particular research. Do you understand?

There is oil spillage, United Nations (UN) is also coming to investigate and research into that particular matter. To be able to do that, they do not need the consent of CSIR, but that of the Regulator to go there with the fishing vessel, because CSIR will not grant permit for a fishing vessel to be used in any area, in any manner, whatsoever. It is the Commission that will have to grant permits and licenses for that to be done. Now, all that this is saying is that, when that situation occurs, then the Minister,

on advice of the Regulator, that is the Commission, can allow such research and investigation to be conducted without going through the rudiment of making the application where the application will be determined, licence issued to them and a permit granted before they do that. So, that is all that the provision is talking about.

I do not think if there is oil spillage and UN is coming, they will need the approval of CSIR to be able to do that; that will be a complete absurdity. So, if you still insist on your amendment, move a Motion and then we will put the Question. Yes?

Mr Dafeamekpor: I insist that my Hon Brother should advert his mind to clause 169 (1) (c).

1.25 p.m.

We are saying that the Minister will, by regulation, “provide for conditions for industrial, semi-industrial and foreign vessels, including the conditions for authorisation of marine research...”. So, we cannot insinuate that it is only CSIR that has the power to regulate research matters. No! This House has the power to enact laws to give power to other institutions to go into marine research. So, Dr Mahama should disengage and let us make progress.

Mr First Deputy Speaker: Yes, Dr Asamoah?

Dr Asamoah: Mr Speaker, research could be short-term, medium term or long-term depending on the urgency and

the need for it. So, to cure the mischief of abusing the licence regime and any omnibus issue, I would suggest that in addition to inserting “fisheries and aquaculture” to the investigation, I can also add — Because to cure CSIR or any relevant institution that might be into research, we can add “on the advice of the Commission in collaboration with the relevant institutions.”.

Mr First Deputy Speaker: Well, when it comes to granting of permission of this nature, I cannot foresee any relevant institution that has the authority to do so. It is only the Commission and the Minister. So we cannot be subjecting — No, the Member has an amendment so I cannot put the Question. I think we have heard a lot. Will you abandon the amendment or you want to move the amendment for me to put the Question on?

Dr Mahama: Mr Speaker, I am abandoning it but with your proposed amendment, I will own, and then we could proceed. I think they get the proposed amendment made because we needed to get that clear. So, we can proceed.

Mr First Deputy Speaker: Hon Member, one of you should own the rendition and let me put the Question. Very well.

Question put and amendment agreed to.

Clause 165 as amended ordered to stand part of the Bill.

Clause 166 — Guidelines, directives or notices

Dr Jasaw: Mr Speaker, we have no advertised amendments.

Mr First Deputy Speaker: It is for your consideration, any proposed amendment?

Yes, you have the floor.

Nana Asafo-Adjei Ayeh: Mr Speaker, thank you for the opportunity. I kindly seek your guidance on clause 166 (2), “the Commission shall publish guidelines, directives or notices issued under subsection 1 in the *Gazette*.” Mr Speaker, we have discussed some issues about publication in the previous clauses where we said in a widely circulated newspaper—

Mr First Deputy Speaker: Hon Member, “notice of guidelines, directives”, are just like notices of the Bills and the laws that we pass. The appropriate place for which that is done, is in the *Gazette*. Even constitutionally, it states in Article 106 that for a Bill to be introduced, apart from a Bill being introduced under a certificate of urgency, it must be published in the *Gazette*. This provision is appropriate.

Clause 166 ordered to stand part of the Bill

Clause 167 — Collaboration with other authorities

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendments.

Mr First Deputy Speaker: It is for your consideration, any proposed amendment?

Clause 167 to 169 ordered to stand part of the Bill

Clause 170 — Interpretation

Mr First Deputy Speaker: Hon Members, clause 170, Interpretation. Any proposed amendments to clause 170?

Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, my indication is that and I have agreed with the Minority, that there is an indication that the Tuna Association would want to engage the House in respect of some technical terms captured here. Mr Speaker, on that note, we want to pray that we bring this consideration to an end.

Mr First Deputy Speaker: We are deferring clause 170, the transitional provisions and the repeals.

Mr Dafeamekpor: And those four provisions, so that we can take—

Mr First Deputy Speaker: We can take the transitional provisions and the repeals because those ones are standard provisions.

Mr Dafeamekpor: Great! Thank you Mr Speaker.

Mr First Deputy Speaker: Clause 170 accordingly deferred.

Yes?

Alhaji Habib Iddrisu: Mr Speaker, in respect of the appeal being made, there is actually a petition from the Tuna Association. So when we engage further, then we would come back to it. Maybe, hopefully by Monday — I am just supporting his application.

Mr First Deputy Speaker: Clause 171.

Clause 171— Repeal and savings

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: Hon Members, any proposed amendment?

Clause 171 ordered to stand part of the Bill

Clause 172 — Transitional provisions

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: Any proposed amendment?

Clause 172 ordered to stand part of the Bill

Mr First Deputy Speaker: Hon Members, we have come to the end of the Consideration Stage for today. Majority Leader, any indication?

1.35 p.m.

Yes, Hon Second Deputy Speaker?

Mr Amoako: Mr Speaker, let me thank you for the opportunity. It is just an observation. Today, I am elated to see such a number in the Chamber on a weekend, today is Saturday, taking part in the Consideration Stage of lawmaking.

Mr Speaker, some of us who were here in the Eighth Parliament and even beyond never saw such a number actually taking part in the Consideration Stage— *[Hear! Hear!]*—And what even makes me more elated today is that I see that most of us are first-timers and they are actively taking part in the lawmaking. I think we need to commend ourselves and urge them to do more.

In fact, when you talk of parliamentarians, this is the actual function: lawmaking. You can talk of “delete” and “add” this and, at times, it is very frustrating. But seeing such a number actually taking active part, I think we need to commend ourselves.

Mr Speaker, yesterday, I think you mentioned it and, seeing the numbers today, I think we need to—And we urge all of us to take this—

Mr First Deputy Speaker: Thank you very much.

Mr First Deputy Speaker: Thank you very much.

Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, may I seek your leave, so that—*[Interruption]*—Do you want to support?

Mr Annoh-Dompreh: If I may corroborate what our respected Second Deputy Speaker had spoken to. Mr Speaker, you set the tone yesterday when you urged, particularly, you singled out the Whips, to apprise ourselves of the potential of Members who have shown—Mr Speaker, coincidentally, yesterday, all our Members who stayed on were all first-time Members of Parliament and it is very encouraging. It also speaks to the fact that, well, majority means something—*[Interruption]*—But really, it is about what your determination to stay relevant and to support.

Mr Speaker, I will further pray your outfit—And I see the Clerk to Parliament also gazing. Let us make a dedicated effort to train Members of Parliament, especially, in legislative drafting. I think it should not just be by the way, where occasionally we get capacity-building programmes and then one or two attend. Let it be a dedicated one. Mr Speaker, I know you are very passionate about lawmaking and you have shown a lot of authority in this area. We should go beyond the passing statement; well, we

want to do it. Let us do it and let us be dedicated to it. And I hope that when we are doing it, Mr Speaker, we should not be too concerned about ratio. It is not about ratio. It is about the potential shown.

The Hon Kabiru, Hon Ralph and others have all shown potential and let us not be overly moved by ratio. Let us look at the potential and what people bring to the table.

Mr Speaker—

Mr First Deputy Speaker: Hon Members, I started yesterday, so, today, I will add my voice in highly commending Members, particularly today being Saturday. The number of the first-timers who I have seen from both Sides taking part in the legislative process is very encouraging—*[Hear! Hear!]*—We should keep it up. I will repeat my proposal yesterday that all the first-timers who have shown interest in the legislative work must be supported, so that we can unearth their talents. We can really develop their talents in the legislative work.

The core business of Parliament is to legislate. That is why we call ourselves the legislative arm of the state. So, if people are not showing interest in the legislative work, then are they here to perform oversight and only representative function, which for me, may be secondary to their legislative work? So, I task the Whips, both the Minority and the Majority Whips, to start doing some work. And together, we pick it up with the House and then decide how

best we can unearth their talents and develop more interest into the legislative work.

So, I will urge upon you to keep it up and once you grasp it and then the interest is there, you are good to go. This one alone can keep you in Parliament until you decide you no longer want to come to Parliament. There are people who are not in Parliament today, but they are forever remembered for their role when it comes to legislative work. Yesterday, I mentioned some of them and it has, once again, gone into our records. So, please, keep it up. It is together we can make laws and good laws for the Republic of Ghana.

Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, I may want to add my voice, but before then, let me pray that we take the item numbered 7(b). Mr Speaker, it is a tall list of Papers that we have to lay under the name of the Minister for Education.

Mr Speaker, the Hon Minister for Education is unavoidably absent, so may I invoke the rules under Order 96 to pray that you permit me to lay the Papers on his behalf.

Mr First Deputy Speaker: Yes, that is the application?

Alhaji Habib Iddrisu: Mr Speaker, I do not think my Colleague should be invoking any Order now. He can only appeal to you that he should be—Because he is not a Minister, so we support that he can do it. There is no

problem about it—*[Interruption]*—I am on my feet. Chief Whip, I am on my feet to support you; let me finish.

Mr Dafeamekpor: Mr Speaker, for the record, Order 96 is the effect of Presentation of Papers. Mr Speaker, Order 96 is the effect that:

“A Paper may be presented to the House only by the Speaker, the chairperson of a Committee, a Member, a Minister or Head of an Independent Constitutional Body.”

So, Mr Speaker, as a Member—*[Interruption]*—Yes, I am a Member. A Member is defined by the Rules. You should check the Interpretation for the definition of a Member.

Mr Speaker, may I pray you to permit me to lay these Papers on behalf of the Minister.

Alhaji Habib Iddrisu: Mr Speaker, we do not have any difficulty in the Majority Chief Whip laying the Papers. But it must be on record that the Sitting of today, Saturday, not a single Minister or Deputy Minister is in the Chamber. That must be made and the record must capture same. So, he can do it; he can lay it. There is no problem, but there is no single Minister or Deputy Minister in the Chamber, but he can do it.

Mr First Deputy Speaker: Hon Member, I think Hon Yusif has come to the House.

Yes, are we in agreement that we lay all these Papers together?

Minority Chief Whip (Mr Frank Annoh-Dompreh): Mr Speaker, we, on this Side, are not obstructing Government Business. We are set out to help them prosecute Government Business.

1.45 p.m.

That is why we are not objecting. So, note this day, so that when it becomes important that we appeal to you to also compromise, I hope you will do—
[Laughter]—

Mr Speaker, on that score—

Mr First Deputy Speaker: So, Hon Members, do we do so on Monday? **Mr Dafeamekpor:** Mr Speaker, I am praying that we can do it—
[Interruption]—No, let us lay the Papers.

Alhaji Habib Iddrisu: Mr Speaker, we have no objection. He can do it.

Mr Annoh-Dompreh: We are masters of our own rules. We have been here before. The practice has been that where Papers are advertised in the name of Ministers, oftentimes, the Majority Leader and Leader of the House has been permitted by the Speaker to lay those Papers and in this instance, we have the able, respected, capable, Majority Chief Whip. He should be allowed to do it.

Mr Speaker, may I invite you to allow the Majority Chief Whip to lay the Papers. It is important. Our Committees are ready to do justice to this Business and we cannot delay any further. No, we

should proceed; we are masters of our rules.

Mr First Deputy Speaker: What is the sense of the House?

Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, we are ready; if we can lay the Papers.

Mr First Deputy Speaker: Very well.

Hon Members, item number 7(b) at the Commencement of Public Business.

PAPERS

By the Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor) on behalf of the Minister for Education—

- (i) Annual Statement by the Audit Committee of the Koforidua Technical University for the year 2024.
- (ii) Annual Statement by the Audit Committee of the OLA College of Education, Cape Coast for the year 2024.
- (iii) Annual Statement by the Audit Committee of the Accra Technical University for the year 2024.
- (iv) Annual Statement by the Audit Committee of the Kumasi Technical University for the year 2024.

- (v) Annual Statement by the Audit Committee of the Ada College of Education for the year 2024.
- (vi) Annual Statement by the Audit Committee of the Presbyterian Women's College of Education, Aburi, for the year 2024.
- (vii) Annual Statement by the Audit Committee of the Complementary Education Agency for the year 2024.
- (viii) Annual Statement by the Audit Committee of the University of Education, Winneba, for the year 2024.
- (ix) Annual Statement by the Audit Committee of the Atebubu College of Education for the year 2024.
- (x) Annual Statement by the Audit Committee of the University for Development Studies for the year 2024.

Referred to the Committee on Education.

Mr First Deputy Speaker: Yes, any indication?

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor): Mr Speaker, I indicated that I want to add my voice before I pray for adjournment. Mr Speaker, let me commend the Chairman and Members of the Committee on Food, Agriculture and Cocoa Affairs for their diligent work. It

has been a very difficult Bill. It was brought, withdrawn and brought back. This is a Bill that we are taking under a certificate of urgency.

Mr Speaker, like you said, for instance, the National Assembly in the Federal Republic of Nigeria have a postgraduate programme in Legislative Drafting at their Parliamentary Training Institute. Members who take interest in drafting really get trained and they do not enter the National Assembly and leave the way they came.

This will be a good litmus test for us to send some of our young men and women who have shown great progress and interest in drafting, as we call it, to nearby Nigeria, periodically, to train and to also visit other Parliaments like the House of Lords and the House of Commons. Myself, I got the opportunity to train with you in Washington, D.C. We trained in Ottawa, Canada.

Mr Speaker, the point I am making is that there are those other National Assemblies who offer formal training or courses for about a week or two, but the Nigerian one takes the individual through the full month training. One is offered an academic qualification in postgraduate programme in Legislative Drafting; it helps. We can do it as a long-distance programme. I am happy that the Clerk to Parliament is here; this will help us to develop more talent like you said. I want to commend all those behind me as well as the Minority.

Mr Speaker, hitherto, we used to be about 15 Members who participated in this process. Sometimes just six of us, but, today, we have over 45 of us who are

interested and the interest will grow more, especially, when Members get to know that opportunities come with it. So, Mr Speaker, we thank you.

This is all we are all asking for: taking interest in the Business of the House and participating in it. This is what our constituents will see. Like Mr Speaker said, all the efforts to go for a re-election may be achieved with your diligence and industry displayed during Businesses of such matter.

Mr Speaker, with these words, I move that in the absence of any further Business, the proceedings of today be brought to an end till Monday when we come back.

I thank you for the opportunity.

Mr First Deputy Speaker: Motion moved for adjournment. Any seconder?

First Deputy Minority Whip (Alhaji Habib Iddrisu): Mr Speaker, I second the Motion and in doing so, I would like to add that the training that the Majority Chief Whip spoke about is

not only in Nigeria. Many Members would want to go to the Commonwealth in the United Kingdom (UK) and other places, so he should not limit it to Nigeria. *[Laughter]*

Mr Speaker, also for the record, in the drafting process, especially with this one, it is over 90 Members who are interested, not 45. We are over 90 Members today for that record.

Mr Speaker, I second the Motion for adjournment.

Mr First Deputy Speaker: Members, the Motion has been moved and seconded; I will put the Question.

Question put and Motion agreed to.

The House is accordingly adjourned till Monday, 14th July, 2025, at 2 o'clock in the afternoon.

ADJOURNMENT

The House was accordingly adjourned at 1.53 p.m. till Monday, 14th July, 2025 at 2.00 p.m.

